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Washington, Thursday, July 4, 1940

The President

ADMINISTRATION OF SECTION 6 OF THE ACT ENTITLED, "AN ACT TO EXPEDITE THE STRENGTHENING OF THE NATIONAL DEFENSE" APPROVED JULY 2, 1940

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

A PROCLAMATION

WHEREAS section 6 of the act of Congress entitled "AN ACT To expedite the strengthening of the national defense," approved July 2, 1940, provides as follows:

"Whenever the President determines that it is necessary in the interest of national defense to prohibit or curtail the exportation of any military equipment or munitions, or component parts thereof, or machinery, tools, or material or supplies necessary for the manufacture, servicing or operation thereof, he may by proclamation prohibit or curtail such exportation, except under such rules and regulations as he shall prescribe. Any such proclamation shall describe the articles or materials included in the prohibition or curtailment contained therein. In case of the violation of any provision of any proclamation, or of any rule or regulation, issued hereunder, such violator or violators, upon conviction, shall be punished by a fine of not more than $10,000, or by imprisonment for not more than two years or by both such fine and imprisonment. The authority granted in this Act shall terminate June 30, 1942, unless the Congress shall otherwise provide."

NOW, THEREFORE, I, FRANKLIN D. ROOSEVELT, President of the United States of America, acting under and by virtue of the authority vested in me by the said act of Congress, do hereby proclaim that the administration of the provisions of section 6 of that act is vested in the Administrator of Export Control, who shall administer such provisions under such rules and regulations as I shall from time to time prescribe in the interest of the national defense.

AND I do hereby further proclaim that upon the recommendation of the aforesaid Administrator of Export Control, I have determined that it is necessary in the interest of the national defense that on and after July 5, 1940, the articles and materials hereinafter listed shall not be exported from the United States except when authorized in each case by a license as hereinafter provided:

1. Arms, ammunition, and implements of war as defined in my Proclamation No. 2237, of May 1, 1937.

2. The following basic materials and products containing the same:

a. Aluminum
b. Antimony
c. Asbestos
d. Chromium
e. Cotton linters
f. Flax
g. Graphite
h. Hides
i. Industrial diamonds
j. Manganese
k. Magnesium
l. Manila fiber
m. Mercury
n. Mica
o. Molybdenum
p. Optical glass
q. Platinum group metals
r. Quartz crystals
s. Quinine
t. Rubber
u. Silk
v. Tin
w. Toluol
x. Tungsten
y. Vanadium
z. Wool

3. Chemicals as follows:

a. Ammonia and ammonium compounds
b. Chlorine
c. Dimethylaniline
d. Diphenylamine
e. Nitric acid
f. Nitrates
g. Nitrocellulose, having a nitrogen content of less than 12 percent
h. Soda lime

CONTENTS

THE PRESIDENT

Proclamation: Page
Administration of sec. 6 of act to expedite strengthening of national defense 2467
Executive Orders:
Competitive classified Civil Service, extension of (Council of Personnel Administration) 2468
Louisiana, public land withdrawal 2468
Regulations governing exportation of articles and materials designated in Proclamation No. 2413 2469

RULES, REGULATIONS, ORDERS

TITLE 7—AGRICULTURE:
Agricultural Marketing Service:
Butter, etc., Farm Products Inspection Law regulations; evaporated milk section added 2472
Cold-pack fruit warehouses, regulations 2472
Federal Seed Act regulations, exemptions for labeling as to germination 2480
TITLE 10—ARMY: WAR DEPARTMENT:
Civil aircraft, assistance to; authority 2480
TITLE 14—CIVIL AVIATION:
Civil Aeronautics Authority:
Economic regulations amended; conference procedure 2480
TITLE 18—CONSERVATION OF POWER:
Federal Power Commission:
National defense power statements, prescribing filing 2481
TITLE 20—EMPLOYEES' BENEFITS:
Railroad Retirement Board:
Railroad Unemployment Insurance Act, regulations under 2481
TITLE 26—INTERNAL REVENUE:
Bureau of Internal Revenue:
Withholding of tax, etc., regulations amended 2481

(Continued on next page)

FEDERAL REGISTER

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CONTENTS—Continued

TITLE 33—NAVIGATION AND NAVIGABLE WATERS:
Corps of Engineers, War Department: Page
Danger zone regulations, Charleston Harbor, S. C.. 2482
TITLE 36—PARKS AND FORESTS:
National Park Service:
Rocky Mountain National Park, amendment to subsidiary regulations..... 2483
TITLE 47—TELECOMMUNICATION:
Federal Communications Commission:
High frequency broadcast stations, standards of good engineering practice..... 2483
TITLE 49—TRANSPORTATION AND RAILROADS:
Interstate Commerce Commission:
Steam Railways, Class I, monthly reports..... 2487

NOTICES

Department of the Interior:
Bureau of Reclamation:
Columbia Basin Project, Wash., first form reclamation withdrawals (2 notices)..... 2487
Securities and Exchange Commission:
Effectiveness of declarations:
Ogden Corp..... 2488
Southeastern Investing Corp.. 2488
Hearings:
Cleveland Electric Illuminating Co. (date changed).. 2489
Pines Winterfront Co. (listing and registration)..... 2488
Standard Power and Light Corp., et al. (time extended)..... 2488
United States Civil Service Commission:
Apportionment at close of business, June 29, 1940..... 2489

i. Sodium acetate, anhydrous
j. Strontium chemicals
k. Sulphuric acid, fuming

4. Products as follows:

a. Aircraft parts, equipment, and accessories other than those listed in my proclamation of May 1, 1937.

b. Armor plate, other than that listed in my proclamation of May 1, 1937.

c. Glass, nonshatterable or bullet proof.

d. Plastics, optically clear.

e. Optical elements for fire control instruments, aircraft instruments, etc.

5. Machine tools as follows:

Metal-working machinery for—

(1) Melting or casting
(2) Pressing into forms
(3) Cutting or grinding, power driven
(4) Welding

AND I do hereby empower the Secretary of State to issue licenses authorizing the exportation of any of the said articles and materials the exportation of which is not already subjected to the requirement that a license be obtained from the Secretary of State authorizing their exportation and I do hereby authorize and enjoin him to issue or refuse to issue licenses authorizing the exportation of any of the articles or materials listed above in accordance with the aforesaid rules and regulations or such specific directives as may be, from time to time, communicated to him by the Administrator of Export Control.

AND I do hereby admonish all citizens of the United States and every person to abstain from every violation of the provisions of section 6 of the act above set forth, of the provisions of this proclamation, and of the provisions of such regulations as may be issued thereunder, and I do hereby warn them that all violations of such provisions will be rigorously prosecuted.

AND I do hereby enjoin upon all officers of the United States, charged with the execution of the laws thereof, the utmost diligence in preventing violations of the said act, of this my proclamation, and of any regulations which may be issued pursuant hereto, and in bringing to trial and punishment any offenders against the same.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the United States of America to be affixed.

DONE at the City of Washington this 2nd day of July, in the year of our Lord nineteen hundred and forty, and [SEAL] of the Independence of the United States of America the one hundred and sixty-fourth, at 11 a. m. E. S. T.

FRANKLIN D ROOSEVELT

By the President:

CORDELL HULL,
Secretary of State.

[No. 2413]

[F. R. Doc. 40-2750; Filed, July 2, 1940; 4:40 p. m.]

EXECUTIVE ORDER

AMENDING SECTION 7 OF EXECUTIVE ORDER NO. 7916 OF JUNE 24, 1938, EXTENDING THE COMPETITIVE CLASSIFIED CIVIL SERVICE

By virtue of the authority vested in me by the Constitution, by section 1753 of the Revised Statutes (U.S.C., title 5, sec. 631), by the Civil Service Act (22 Stat. 403), and as President of the United States, section 7 of Executive Order No. 7916 of June 24, 1938, extending the competitive classified civil service, is hereby amended to read as follows:

"SEC. 7. (a) Effective July 1, 1940, the United States Civil Service Commission is directed to establish within the Commission a Council of Personnel Administration and to designate as members thereof such of the personnel of the Commission as the Commission shall determine. The Commission shall designate one of such members as Chairman of the Council.

"(b) In addition to the membership of the Council of Personnel Administration above provided for, the directors of personnel of the several departments and independent establishments and a representative of the Bureau of the Budget, to be designated by the Director thereof, shall be *ex officio* members of the Council.

"(c) The Council shall advise and assist the President and the Commission in the protection and improvement of the merit system, and recommend from time to time to the President and the Commission needed changes in procedure, rules, or regulations. When directed so to do by the President or the Commission, the Council shall hold hearings and conduct investigations with respect to alleged abuses and proposed changes. The Council shall carry on programs of study to coordinate and perfect the executive personnel service in all its branches, and shall report upon the progress of personnel administration throughout the service.

"(d) Executive Order No. 5612 of April 25, 1931, is hereby revoked."

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
July 1, 1940.

[No. 8467]

[F. R. Doc. 40-2746; Filed, July 2, 1940; 2:28 p. m.]

EXECUTIVE ORDER

WITHDRAWAL OF PUBLIC LANDS FOR CLASSIFICATION AND IN AID OF LEGISLATION

LOUISIANA

By virtue of the authority vested in me by the act of June 25, 1910, ch. 421, 36 Stat. 847, as amended by the act of August 24, 1912, ch. 369, 37 Stat. 497, and subject to the conditions therein expressed and to all valid existing rights,

it is ordered that all public lands in the State of Louisiana, whether surveyed or unsurveyed, be, and they are hereby, temporarily withdrawn from settlement, location, sale, or entry, and reserved for classification and in aid of legislation.

This order shall remain in force until revoked by the President or by act of Congress.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
July 1, 1940.

[No. 8468]

[F. R. Doc. 40–2747; Filed, July 2, 1940; 2:28 p. m.]

REGULATIONS GOVERNING THE EXPORTATION OF ARTICLES AND MATERIALS DESIGNATED IN THE PRESIDENT'S PROCLAMATION OF JULY 2, 1940, ISSUED PURSUANT TO THE PROVISIONS OF SECTION 6 OF THE ACT OF CONGRESS APPROVED JULY 2, 1940

Pursuant to the authority vested in me by the provisions of section 6 of the Act of Congress approved July 2, 1940, entitled "An Act to expedite the strengthening of the national defense", I hereby prescribe the following regulations to govern the exportation of:

Arms, ammunition, and implements of war as defined in my proclamation No. 2237 of May 1, 1937.

The following basic materials and products containing the same:

a. Aluminum
b. Antimony
c. Asbestos
d. Chromium
e. Cotton Linters
f. Flax
g. Graphite
h. Hides
i. Industrial Diamonds
j. Manganese
k. Magnesium
l. Manila Fiber
m. Mercury
n. Mica
o. Molybdenum
p. Optical Glass
q. Platinum Group Metals
r. Quartz Crystals
s. Quinine
t. Rubber
u. Silk
v. Tin
w. Toluol
x. Tungsten
y. Vanadium
z. Wool

Chemicals as follows:

a. Ammonia and Ammonium Compounds
b. Chlorine
c. Dimethylaniline
d. Diphenylamine
e. Nitric Acid
f. Nitrates
g. Nitrocellulose, having a nitrogen content of less than 12%
h. Soda Lime
i. Sodium Acetate, anhydrous
j. Strontium Chemicals
k. Sulphuric Acid, fuming

Products as follows:

a. Aircraft parts, equipment, and accessories other than those listed in my proclamation of May 1, 1937.
b. Armor plate, other than that listed in my proclamation of May 1, 1937.
c. Glass, nonshatterable or bullet proof.
d. Plastics, optically clear.
e. Optical elements for fire control instruments, aircraft instruments, etc.

Machine Tools as follows:

Metal working machinery for—

(1) Melting or Casting
(2) Pressing into Forms
(3) Cutting or Grinding, Power Driven
(4) Welding

1. As used in my proclamation issued on July 2, 1940 pursuant to the provisions of Section 6 of the Act of Congress approved July 2, 1940, and in these regulations, the following terms shall be construed as defined herein:

a. *Aluminum.*—Metallic aluminum and alloys, crude, semifabricated and scrap, containing in excess of 10% aluminum.

b. *Antimony.* Antimony ores, concentrates, metal, alloys in crude and semifabricated form, and antimony compounds.

c. *Asbestos.* Asbestos crude and semifabricated, if chiefly of fibers of three quarters of an inch or more in length.

d. *Chromium.* Chromite, metallic chromium, chromium bearing alloys containing in excess of 10% chromium, chromite refractories, and chromium compounds.

e. *Flax.* Flax and cloth containing flax, except when manufactured into wearing apparel or household goods.

f. *Graphite.* Flake graphite and graphite crucibles, retorts and stoppers.

g. *Hides.* Cattle and horse.

h. *Manganese.* Manganese ores or concentrates containing 45% or more of metallic manganese, and alloys containing in excess of 10% metallic manganese.

i. *Magnesium.* Metallic magnesium and alloys, crude, semifabricated, and scrap, containing in excess of 10% magnesium.

j. *Mercury.* Mercury ores and concentrates and metallic mercury.

k. *Mica.* Mica blocks, sheets and splittings, and semifabricated forms produced therefrom.

l. *Molybdenum.* Molybdenum ores, concentrates, metal, alloys containing in excess of 10% molybdenum and molybdenum compounds.

m. *Platinum.* Platinum group metals and alloys.

n. *Quartz Crystals.* Piezo electric and optical.

o. *Quinine.* Quinine barks, cinchona or others from which quinine may be extracted, and quinine sulfate.

p. *Rubber.* All forms and types of crude rubber, reclaimed rubber, and scrap rubber containing in excess of 5% rubber.

q. *Silk.* Raw silk and waste silk.

r. *Tin.* Tin metal, alloys containing in excess of 5% tin in crude and semifabricated form; tin plate scrap and other scrap materials plated with metal containing tin; and other tin or tin alloy scrap and wastes.

s. *Toluol.* Toluol and light oil resulting from the distillation of coal tar.

t. *Tungsten.* Tungsten ores and concentrates, metal, alloys containing in excess of 5% tungsten and tungsten compounds.

u. *Vanadium.* Vanadium ores and concentrates; alloys containing in excess of 10% vanadium, and vanadium compounds.

v. *Wool.* Wool in the grease, or washed, wool scoured on the skin, or when pulled or sheared.

Except as otherwise indicated the terms used in these regulations shall not include completely fabricated articles or materials which are ready for ultimate consumption.

2. None of the articles or materials listed above shall be exported unless a license authorizing such export has been issued by the Secretary of State. Blank forms of application for export licenses similar to those printed below will be furnished by the Secretary of State upon request:

DEPARTMENT OF STATE

UNITED STATES OF AMERICA

Application for License to Export Arms, Ammunition, or Implements of War

[Application to be made in duplicate]

[Original]

Applicant's registration No.	---------- (Insert here name of country of destination)	License No. ---- (For official use only)

GENERAL INSTRUCTIONS

(a) One duplicate application should be made for each complete shipment to any one consignee, and may include more than one commodity, but may not include shipments to more than one country.

(b) Applications should be typewritten, with the exception of signature, but will be considered if written legibly in ink.

(c) Commodities appearing under (7) below should be listed under the number of the pertinent category and category subdivision of that Presidential proclamation enumerating arms, ammunition, and implements of war which is in effect on the date the application is submitted. Each commodity listed should be designated clearly and specifically, the type and model designation being included whenever possible.

(d) A separate value should be given under (8) below for each category, and for each subdivision of a category, which enters into the shipment covered by the application. Values listed should represent the selling price only of the articles exported, and should not include such supplementary costs as packing, freight, etc.

(e) Unsigned applications or applications which omit essential information called for in the numbered spaces will be returned.

(f) When countersigned and impressed with the seal of the Department of State, this application becomes a license.

(g) Any attempt to export a commodity differing in any way from that licensed, or any alteration of a license, except by a duly authorized officer of the Government, is punishable under appropriate acts of Congress. Changes in the information set forth in licenses which have been issued under the seal of the Secretary of State can be effected by amendments which can be made only by the Department of State, or by collectors of customs or postmasters acting under the specific instructions of the Department of State.

DEPARTMENT OF STATE,
Washington, D. C.

(1) Date of application _____
(2) Applicant's reference No. _____

The undersigned hereby applies for license to export the commodity described below and warrants the truth of all statements and answers herewith made regarding it.

(3) Name of applicant _____
By _____
(To be signed in ink)

(4) Consignee in foreign country:
Name _____
Nationality _____
Address:
Street _____
City _____
State or Province _____
Country _____

(5) Purchaser in foreign country:
Name _____
Nationality _____
Address:
Street _____
City _____
State or Province _____
Country _____

(6) Quantity	(7) Commodity (to be listed as indicated under instruction (c))	(8) Approximate net value

(9) State the specific purpose for which the material is required:
_____
_____
_____

(10) Check the terms of sale of the commodities listed under (7) to the purchaser named under (5).
(☐) Full payment on delivery at factory.
(☐) Full payment on delivery at port of exit.
Other terms (explain fully):
_____
_____
_____

(11) License to be sent to:
Name _____
Address:
Street _____
City _____
State _____

(12) Consignor in United States:
Name _____
Nationality _____
Address:
Street _____
City _____
State _____

(13) Seller in United States:
Name _____
Nationality _____
Address:
Street _____
City _____
State _____
Nature of business _____

(14) Port of exit in the United States from which it is proposed to export the shipment.

License is hereby granted to the applicant mentioned herein to export from the United States of America to _____ the commodity as described and in the quantity given, on the following terms and conditions:

This license is not transferable and is *subject to revocation without notice.*

Shipment must be made from port of exit within *1 year* from date of this license as given below under the seal of the Department.

Export licenses must be filed with the collector of customs at the port from which the shipment is departing from the United States prior to the proposed departure.

FOR COLLECTORS OF CUSTOMS AND POSTMASTERS

This license should be returned to the Secretary of State at the end of the month during which the last article of the shipment described therein was exported, or during which notice has been given that the remaining balance will not be shipped, or during which the license has been revoked or has expired. When the entire shipment has been exported, the license should be marked "COMPLETED"; otherwise the returned license should bear a notation stating the reason for its return and the quantity and value of the articles actually shipped.

If partial shipments are made on this license, endorsements by the collectors of customs or postmasters will be made below:

Quantity	Description	Value	Port of exit	Date	Officer

Date of license _____
(For official use only)

(When countersigned and impressed with the seal of the Department of State, this application becomes a license.)

For the Secretary of State:
By _____
(For official use only)

DEPARTMENT OF STATE

UNITED STATES OF AMERICA

Application for License to Export Tin-Plate Scrap

[Application to be made in duplicate]
[Original]

_____ (Insert here name of country of destination)	License No. _____ (For official use only)

GENERAL INSTRUCTIONS

(a) One duplicate application should be made for each complete shipment to any one consignee.

(b) Applications should be typewritten, with the exception of signature which should be written in ink.

(c) Where exact number of packages, weight, and value cannot be ascertained at the time of application, estimates should be given. Slight variations may be allowed.

(d) Unsigned applications or applications which omit essential information called for in the numbered spaces will be returned.

(e) Any attempt to export a commodity differing in any way from that licensed, or any alteration of a license in an attempt to export without a license, is punishable under appropriate acts of Congress.

(f) When countersigned and impressed with the seal of the Department of State, this application becomes a license.

DEPARTMENT OF STATE,
Washington, D. C.

(1) Date of application _____
(2) Applicant's reference No. _____

The undersigned hereby applies for license to export the commodity described below and warrants the truth of all statements and answers herewith regarding it.

(3) Name of applicant _____
By _____
(Signature)
Title _____

(4) Consignee in foreign country:
Name _____
Nationality _____
Address:
Street _____
City _____
State or Province _____
Country _____

(5) Purchaser in foreign country:
Name _____
Nationality _____
Address:
Street _____
City _____
State or Province _____
Country _____

(6) Character of tin-plate scrap to be exported	(7) Number and type of containers	(8) Approximate weight	Approximate value

(10) The tin-plate scrap to be exported under this license was produced by:
_____ _____
(Name) (Address)

(11) State the specific purpose for which the material is required:
_____
_____
_____

(12) State the reason or reasons why the applicant wishes to export the tin-plate scrap referred to in this application rather than to sell it in the United States:
_____
_____
_____

(13) License to be sent to:
Name _____
Address:
Street _____
City _____
State _____

(14) Consignor in United States:
Name _____
Nationality _____
Address:
Street _____
City _____
State _____
Nature of business _____

If partial shipments are made on this license, endorsements by the collectors of customs will be made below.

Quantity	Value	Port of exit	Date	Name of officer

License is hereby granted to the applicant mentioned herein to export from the United States of America to _____ the commodity as described and in the quantity given, on the following terms and conditions:

This license is not transferable and is *subject to revocation without notice.*

This license remains valid, unless revoked, for shipment from port of exit at any time during the calendar year in which issued. All licenses expire automatically at the close of the calendar year in which issued.

Date of license _____
(For official use only)

(When countersigned and impressed with seal of the Department of State, this application becomes a license.)

For the Secretary of State:
By _____
(For official use only)

DEPARTMENT OF STATE

UNITED STATES OF AMERICA

Application for License to Export Articles and Materials (Other Than Arms, Ammunition, and Implements of War and Tin-Plate Scrap) Designated by the President as Necessary to the National Defense Pursuant to Section 6 of the Act of Congress Approved July 2, 1940

[Application to be made in duplicate]

[Original]

---------- (Insert here name of country of destination)	License No. (For official use only)

GENERAL INSTRUCTIONS

(a) One duplicate application should be made for each complete shipment to any one consignee, and it may not include more than one commodity nor shipments to more than one country.

(b) Applications should be typewritten, with the exception of signature, but will be considered if written legibly in ink.

(c) Articles and materials appearing under (7) below should be designated clearly and specifically, the type and model designation being included whenever applicable.

(d) Values listed should represent the selling price only of the articles exported, and should not include such supplementary costs as packing, freight, etc.

(e) Specify under paragraph (9) the name and address of the producer or manufacturer in the United States of each article and material to be exported or, if obtained outside of the United States, the name and address of the person from whom procured.

(f) Unsigned applications or applications which omit essential information called for in the numbered spaces will be returned.

(g) When countersigned and impressed with the seal of the Department of State, this application becomes a license.

(h) Any attempt to export a commodity differing in any way from that licensed, or any alteration of a license, except by a duly authorized officer of the Government, is punishable under appropriate acts of Congress. Changes in the information set forth in licenses which have been issued under the seal of the Secretary of State can be effected by amendments which can be made only by the Department of State, or by collectors of customs or postmasters acting under the specific instructions of the Department of State.

DEPARTMENT OF STATE,
Washington, D. C.

(1) Date of application ----------
(2) Applicant's reference No. ------

The undersigned hereby applies for license to export the commodity described below and warrants the truth of all statements and answers herewith made regarding it.

(3) Name of applicant ----------
By ----------
(To be signed in ink)

(4) Consignee in foreign country:
Name ----------
Nationality ----------
Address:
Street ----------
City ----------
State or Province ----------
Country ----------

(5) Purchaser in foreign country:
Name ----------
Nationality ----------
Address:
Street ----------
City ----------
State or Province ----------
Country ----------

(6) Number of units or weight (whichever is applicable). If weight is given in tons, specify whether long or short tons	(7) Description of articles or materials to be exported	(8) Approximate net value

(9) Source of material to be exported (see paragraph (e) above):
---------- ----------
(Name) (Address)

(10) State the specific purpose for which the articles or materials are required and the name and address of the ultimate consumer in the foreign country:

----

(11) License to be sent to:
Name ----------
Address:
Street ----------
City ----------
State ----------

(12) Consignor in United States:
Name ----------
Nationality ----------
Address:
Street ----------
City ----------
State ----------

(13) Seller in United States:
Name ----------
Nationality ----------
Address:
Street ----------
City ----------
State ----------
Nature of business ----------

(14) Port of exit in the United States from which it is proposed to export the shipment ----------

License is hereby granted to the applicant mentioned herein to export from the United States of America to ---------- the articles or materials described and in the quantity given, on the following terms and conditions:

This license is not transferable and is *subject to revocation without notice.*

Shipment must be made from port of exit within *1 year* from date of this license as given below under the seal of the Department.

Export licenses must be filed with the collector of customs at the port from which the shipment is departing from the United States prior to the proposed departure.

FOR COLLECTORS OF CUSTOMS AND POSTMASTERS

This license should be returned to the Secretary of State at the end of the month during which the last article of the shipment described therein was exported, or during which notice has been given that the remaining balance will not be shipped, or during which the license has been revoked or has expired. When the entire shipment has been exported, the license should be marked "COMPLETED"; otherwise the returned license should bear a notation stating the reason for its return and the quantity and value of the articles actually shipped.

Collectors of customs or postmasters will endorse in the following spaces information concerning shipments made under this license:

Quantity	Description	Value	Name of vessel, if export is made by water	Port of exit	Date	Officer

Date of license ----------
(For official use only)

For the Secretary of State:
By ----------

(When countersigned and impressed with the seal of the Department of State, this application becomes a license.)

(For official use only)

---

3. The Secretary of State will issue export licenses to authorize proposed shipments of the said articles and materials to applicants who have duly filled out the appropriate form when I have determined that the proposed exportation would not be detrimental to the interests of the national defense.

4. Regulations contained in the pamphlet *INTERNATIONAL TRAFFIC IN ARMS—Laws and Regulations Administered by the Secretary of State Governing the International Traffic in Arms, Ammunition, and Implements of War and Other Munitions of War*, seventh edition, will continue to govern the exportation of arms, ammunition, and implements of war and tin-plate scrap except that export licenses will not be issued when in any case I shall have determined that the proposed shipment would be contrary to the interests of the national defense.

5. The shippers' export declarations must contain the same information in regard to the nature and value of the articles and materials to be exported as that which appears in the application for license.

6. Export licenses are not transferable and are subject to revocation without notice. If not revoked, licenses are valid for one year from the date of issuance.

7. No alterations may be made except by the Department of State or by collectors of customs or postmasters acting under the specific instructions of the Department of State in export licenses which have been issued under the seal of the Secretary of State.

8. Export licenses which have been revoked or which have expired must be returned immediately to the Secretary of State.

9. The country designated on the application for license as the country of destination shall in each case be the country of ultimate destination. If the goods to be exported are consigned to one country with the intention that they be transshipped thence to another country, the latter country shall be named as the country of destination.

10. Applications for license shall contain adequate descriptions of the articles and materials to be exported, including type and model descriptions if applicable. If an application is submitted in which the articles to be exported are inadequately described, it will be returned to the applicant for completion in this respect.

11. The original license must be presented, prior to exportation, to the collector of customs at the port through which the shipment authorized to be exported is being made. If shipment is made by parcel post, the license must be presented to the postmaster at the post office at which the parcel is mailed.

12. Articles and materials entering or leaving a port of the United States in transit through the territory of the United States to a foreign country will not be considered as imported or exported for the purposes of these regulations.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
July 2, 1940.

[F. R. Doc. 40-2751; Filed, July 2, 1940; 4:40 p. m.]

Rules, Regulations, Orders

TITLE 7—AGRICULTURE

CHAPTER I—AGRICULTURAL MARKETING SERVICE

PART 55—BUTTER, CHEESE, EGGS, DRESSED POULTRY AND DRESSED DOMESTIC RABBITS (GRADING AND CERTIFICATION FOR CLASS AND CONDITION)

REGULATIONS UNDER THE FARM PRODUCTS INSPECTION LAW

Amendment

By virtue of the authority vested in the Secretary of Agriculture by the Department of Agriculture Appropriation Act, 1941, approved June 25, 1940 (Public, No. 658, 76th Congress, Chapter 421, 3rd Session), Part 55, Chapter I, Title 7, CFR is hereby amended as follows:

(a) Add the following new section:

§ 55.4a Evaporated milk, dry milk, and other dairy products designated by the Chief of the Agricultural Marketing Service may be sampled, weighed, and graded at the points indicated in § 55.4 (a), (b), and (c). [Reg. 3, sec. 2]

(b) In §§ 55.5, 55.6, 55.7, 55.11, 55.13, 55.14, 55.28 (a), and 55.29 (e), insert after the word "cheese" the words, "evaporated milk, dry milk, and other dairy products designated by the Chief of the Agricultural Marketing Service." [Reg. 4, secs. 1, 2, and 3; Reg. 5, secs. 2 and 4; Reg. 6, sec. 1; Reg. 8, sec. 1; and Reg. 9, sec. 1, par. 5]

Done at Washington, D. C., this 2d day of July 1940. Witness my hand and the seal of the Department of Agriculture.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 40-2759; Filed, July 3, 1940; 11:03 a. m.]

PART 112—COLD-PACK FRUIT WAREHOUSES

REGULATIONS FOR WAREHOUSEMEN STORING COLD-PACK FRUIT UNDER THE UNITED STATES WAREHOUSE ACT

By virtue of the authority vested in the Secretary of Agriculture by Section 28 of the United States Warehouse Act, approved August 11, 1916 (39 Stat. 490, Sec. 28; 7 U.S.C. 268), as amended, Part 112, Chapter I, Title 7, CFR, is hereby amended to read as follows:

TABLE OF CONTENTS

DEFINITIONS

Sec.
112.1 Meaning of words.
112.2 Terms defined.

WAREHOUSE LICENSES

112.3 Application forms.
112.4 Grounds for not issuing license.
112.5 Net assets required.
112.6 License shall be posted.
112.7 Suspension or revocation of warehouse license.
112.8 Return of terminated, suspended or revoked warehouse license.
112.9 Lost or destroyed warehouse license.
112.10 Unlicensed warehousemen must not represent themselves as licensed.

WAREHOUSE BONDS

112.11 Time of filing.
112.12 Basis of amount of bond; additional amounts.
112.13 Amendment of license.
112.14 New bond required each year.
112.15 Approval of bond.

WAREHOUSE RECEIPTS

112.16 Form.
112.17 Copies of receipts.
112.18 Lost or destroyed receipts; bond for.
112.19 Approval of form of receipt.
112.20 Partial delivery of cold-pack fruit.
112.21 Return of receipt before delivery of cold-pack fruit.
112.22 Signatures of persons authorized to direct delivery to be filed with warehouseman.
112.23 Omission of grade; no compulsion by warehouseman.

DUTIES OF LICENSED WAREHOUSEMAN

112.24 Cold-pack fruit must be inspected.
112.25 Insurance; requirements.
112.26 Premiums; inspections; reports.
112.27 Care of cold-pack fruit in storage.
112.28 Care of nonlicensed cold-pack fruit, or other commodities.
112.29 Records to be kept in safe place.
112.30 Warehouse charges.
112.31 Business hours.
112.32 Identification of lots.
112.33 Lot card record.
112.34 System of accounts.
112.35 Reports.
112.36 Copies of reports to be kept.
112.37 Canceled receipts; auditing.
112.38 Inspections and examinations of warehouses.
112.39 Inspection of weighing, testing, measuring apparatus.
112.40 Care of warehouses.
112.41 Signs of tenancy.
112.42 Deteriorating goods; handling.
112.43 Notification of deteriorating cold-pack fruit.
112.44 Excess storage.
112.45 Removal of cold-pack fruit from storage.
112.46 Signatures of persons to sign receipts to be filed with department.
112.47 Breakage of equipment; notification.
112.48 Fire loss to be reported by telegraph.
112.49 Copies of inspection certificates to be filed.

FEES

112.50 Warehouse license fees.
112.51 Warehouse inspection fees.
112.52 Advance deposit.
112.53 Return of excess deposit.

LICENSED INSPECTORS, GRADERS, AND WEIGHERS

112.54 Application forms.
112.55 Examination of applicants.
112.56 Posting of license.
112.57 Duties of licensees.
112.58 Inspector's, grader's, and weigher's certificate; form.
112.59 Copies of certificates to be kept.
112.60 Licensees to permit and assist in examination.
112.61 Reports.
112.62 License-suspension; revocation.
112.63 Return of suspended or revoked licenses. Termination of license.
112.64 Lost or destroyed licenses.
112.65 Unlicensed inspector, grader, and weigher; misrepresentation.

COLD-PACK FRUIT INSPECTION AND CLASSIFICATION

112.66 Classification; statement of.
112.67 Standards to be used.
112.68 Statement of kind-grade-condition.

APPEAL OF GRADES

112.69 Procedure.

MISCELLANEOUS

112.70 Bonds required.
122.71 Publications.
112.72 Information of violations.
112.73 Procedure in hearings.
112.74 Combination license.
112.75 Bond, fees, for combination license.
112.76 Amendments.

DEFINITIONS

§ 112.1 *Meaning of words.* Words used in the singular form shall be deemed to import the plural, and vice versa, as the case may demand.

§ 112.2 *Terms defined.* For the purposes of these regulations, unless the context otherwise require, the following terms shall be construed, respectively, to mean:

(a) *Cold-pack fruit.* The clean, sound product obtained by packing under the following minimum specifications, in suitable containers, properly matured and prepared fresh fruit and berries, with or without the addition of sugar (sucrose), and by maintaining it at a temperature sufficiently low to insure its preservation:

(1) All containers shall be marked as of a certain variety and shall be true to name—for example: Straight or 2 plus 1 Cuthbert raspberries or Marshall strawberries; provided a tolerance of 5 per cent for other varieties may be allowed.

(2) All barrels shall be new, shall have six hoops, shall be properly paraffin lined,

and shall be made of fir or other suitable wood.

(3) All cans used for containers and storing of berries shall be enamel lined.

(4) Packing plants shall be kept in a clean and sanitary condition. Products packed in open fields, open sheds, or barns, or within too close proximity to any barn, cesspool, or refuse dump shall be denied eligibility for storage.

(5) Within 12 hours after packing, all berries and fruits to be stored under this act shall be in a sharp room having a temperature not in excess of zero and shall be held in such sharp room for at least 48 hours before being placed in regular cold storage rooms; provided, that berries to which has been added not more than one-tenth of one per cent of benzoate of soda by weight shall not be placed in such sharp room but such berries shall be placed within 12 hours after packing in regular cold storage rooms having a temperature not lower than 32° nor higher than 40° F.

(6) All barrels shall be filled approximately as follows: 2 plus 1—150 pounds of sugar to 300 pounds fruit, making a total of 450 pounds. Straight berries, 375 pounds berries.

(7) Neither ice, nor water, nor sugar in solution shall be added.

(8) If berries are sugared, sugar and berries are to be weighed separately, and not to exceed 2 per cent variation in sugar may be allowed.

(9) All berries or fruits, when dirty, shall be washed in clean water and drained before weighing.

(10) All containers must be coded to determine when, where, and by whom they were packed.

(11) The weight mark on barrels is to be the in-weight and the tare is to be the tare of containers before filling.

(b) *The act.* The United States warehouse act, approved August 11, 1916 (39 Stat. 486; 7 U.S.C. 241–273), as amended.

(c) *Person.* An individual, corporation, partnership, or two or more persons having a joint or common interest.

(d) *Secretary.* The Secretary of Agriculture of the United States.

(e) *Chief of the Service.* The Chief of the Agricultural Marketing Service.

(f) *Designated representative.* The Chief of the Agricultural Marketing Service of the United States Department of Agriculture.

(g) *Regulations.* Rules and Regulations made under the act by the Secretary.

(h) *Service.* The Agricultural Marketing Service of the United States Department of Agriculture.

(i) *Warehouse.* Unless otherwise clearly indicated by the context, any suitable building, structure, or other protected inclosure licensed or to be licensed under the act, in which cold-pack fruit is or may be stored for interstate or foreign commerce, or, if located within any place under the exclusive jurisdiction of the United States, in which cold-pack fruit is or may be stored.

(j) *Warehouseman.* Any person lawfully engaged in the business of storing cold-pack fruit, who holds an effective warehouseman's license under the act, or who has applied for such a license.

(k) *License.* A license issued under the act by the Secretary.

(l) *Licensed warehouseman's bond.* A bond required to be given under the act by a licensed warehouseman.

(m) *Licensed inspector.* A person licensed under the act by the Secretary to sample, to inspect, to grade, and to weigh and to certificate the grade, condition, and weight of cold-pack fruit for storage.

(n) *Receipt.* A licensed warehouse receipt issued under the act, unless otherwise specified.

WAREHOUSE LICENSES

§ 112.3 *Application forms.* Applications for licenses and for modifications or extensions of licenses under the act shall be made to the Secretary upon forms prescribed for the purpose and furnished by the Service, shall truly state the information therein contained, and shall be signed by the applicant. The applicant shall at any time furnish such additional information as the Secretary or the chief of the Service shall find to be necessary to the consideration of his application.

§ 112.4 *Grounds for not issuing license.* A license for the conduct of a warehouse shall not be issued if it be found by the Secretary, or his designated representative, that the warehouse is not suitable for the proper storage of cold-pack fruit, that the warehouseman is incompetent to conduct such warehouse in accordance with the act and these regulations, or that there is any other sufficient reason within the purposes of the act for not issuing such license.

§ 112.5 *Net assets required.* The warehouseman conducting a warehouse licensed or for which application for license has been made under the act shall have and maintain above all exemptions and liabilities net assets liable for the payment of any indebtedness arising from the conduct of the warehouse, to the extent of at least $5 for each 1,000 pounds, or fraction thereof, of the maximum number of pounds of cold-pack fruit that the warehouse will accommodate when stored in the manner customary to the warehouse as determined by the chief of the Service, provided that the amount of such assets shall not be less than $5,000 and need not be more than $100,000.

If such warehouseman has applied for licenses to conduct two or more warehouses in the same State, the assets applicable to all of which shall be subject to the liabilities of each, such warehouses shall be deemed to be one warehouse for the purposes of the assets required under this section. For the purposes of this section only, paid-in capital stock, as such, shall not be considered a liability. Any deficiency in the required net assets may be supplied by an increase in the amount of the warehouseman's bond in accordance with section 112.12 (b).

§ 112.6 *License shall be posted.* Immediately upon receipt of his license or of any modification or extension thereof under the act, the warehouseman shall post the same and thereafter, except as otherwise provided in these regulations, keep it posted until suspended or terminated, in a conspicuous place in the principal office where receipts issued by such warehouseman are delivered to depositors.

§ 112.7 *Suspension or revocation of warehouse license.* Pending investigation, the Secretary, or his designated representative, whenever he deems necessary, may suspend a warehouseman's license temporarily without hearing. Upon written request and a satisfactory statement of reasons therefor, submitted by a warehouseman, the Secretary, or his designated representative, may, without hearing, suspend or revoke the license issued to such warehouseman. The Secretary, or his designated representative, may, after opportunity for hearing when possible has been afforded in the manner prescribed in this section, revoke a license issued to a warehouseman when such warehouseman (a) is bankrupt or insolvent; (b) has parted in whole or in part, with his control over the licensed warehouse; (c) is in process of dissolution or has been dissolved; (d) has ceased to conduct such licensed warehouse; or (e) has in any other manner become incompetent or incapacitated to conduct the business of the warehouse. Whenever any of the conditions mentioned in the subdivisions (a) to (e) of this section shall come into existence it shall be the duty of the warehouseman to notify immediately the chief of the Service of the existing condition. Before a license is revoked for any violation of, or failure to comply with any provision of the act, or of these regulations, or upon the ground that unreasonable or exorbitant charges have been made for services rendered, the warehouseman involved shall be furnished by the Secretary, or his designated representative, a written statement specifying the charges, and shall be allowed a reasonable time within which he may answer the same in writing and apply for a hearing, an opportunity for which shall be afforded in accordance with § 112.73.

§ 112.8 *Return of terminated, suspended or revoked warehouse license.* When a license issued to a warehouseman terminates or is suspended or revoked by the Secretary, or his designated representative, it shall be returned to the Secretary. At the expiration of any period of suspension of such license, unless it be in the meantime revoked, the dates of the beginning and termination of the suspension shall be indorsed thereon, it shall be returned to the licensed warehouseman to whom it was originally issued, and it shall be posted as required in § 112.6: *Provided*, That in the discretion of the Chief of Service

a new license may be issued without reference to such suspension.

§ 112.9 *Lost or destroyed warehouse license.* Upon satisfactory proof of the loss or destruction of a license issued to a warehouseman, a duplicate thereof may be issued under the same number.

§ 112.10 *Unlicensed warehousemen must not represent themselves as licensed.* No warehouse or its warehouseman shall be designated as licensed under the act and no name or description conveying the impression that it or he is so licensed shall be used, either in a receipt or otherwise, unless such warehouseman holds an unsuspended or unrevoked license for the conduct of such warehouse.

WAREHOUSE BONDS

§ 112.11 *Time of filing.* Unless the warehouseman has previously filed with the Secretary the necessary bond required by § 112.12, he shall file such bond within a time, if any, specified by the Secretary, or his designated representative, such bond to cover all obligations arising thereunder during the period of the license.

§ 112.12 *Basis of amount of bond; additional amounts.* (a) Exclusive of any amount which may be added in accordance with paragraphs (b) and (c) of this section, the amount of such bond shall be at the rate of $5 for each 1,000 pounds or fraction thereof, of the maximum number of pounds of cold-pack fruit that the warehouse will accommodate when stored in the manner customary to the warehouse for which such bond is required, as determined by the chief of the Service, but not less than $5,000 nor more than $50,000. If such warehouseman has applied for licenses to conduct two or more warehouses in the same State, the assets applicable to all of which shall be subject to the liabilities of each and shall desire to give a single bond meeting the requirements of the act and these regulations for said warehouses, such warehouses shall be deemed to be one warehouse for the purposes of the bond required under §§ 112.11–112.15. The amount of any bond covering more than one warehouse shall be determined on the same basis as for a single warehouse, but with the maximum amount raised to $100,000.

(b) In case of a deficiency in net assets under § 112.5, there shall be added to the amount of the bond fixed in accordance with paragraph (a) of this section an amount equal to such deficiency.

(c) If the Secretary, or his designated representative, finds the existence of conditions warranting such action, there shall be added to the amount fixed in accordance with paragraphs (a) and (b) of this section a further amount, fixed by him, to meet such conditions.

§ 112.13 *Amendment of license.* If application is made under § 112.3, for an amendment of a license, and no bond previously filed by the warehouseman under §§ 112.11–112.15 covers obligations incurred during the period of such amendment, the warehouseman shall, when notice has been given by the Secretary, or his designated representative, that such amendment will be granted upon compliance by such warehouseman with the act, file with the Secretary, within a time, if any, fixed in such notice, a bond complying with the act, unless bond in sufficient amount has been filed since the filing of such application. In the discretion of the Secretary, a properly executed instrument in form approved by him, amending, extending, or continuing in force and effect the obligations of a valid bond previously filed by the warehouseman and otherwise complying with the act and these regulations may be filed in lieu of a new bond.

§ 112.14 *New bond required each year.* Whenever a license has been issued for a period longer than one year, such license shall not be effective beyond one year from its effective date unless the warehouseman shall have filed a new bond in the required amount with, and such bond shall have been approved by, the Secretary, or his designated representative, prior to the date on which that license would have expired had it been issued for but one year, subject to the provisions of § 112.13.

§ 112.15 *Approval of bond.* No bond, amendment, or continuation thereof shall be deemed accepted for the purpose of the act and these regulations until it has been approved by the Secretary, or his designated representative.

WAREHOUSE RECEIPTS

§ 112.16 *Form.* (a) Every receipt, whether negotiable or nonnegotiable, issued for cold-pack fruit stored in a warehouse shall, in addition to complying with the requirements of section 18 of the act (42 Stat. 1284; 7 U.S.C. 260), embody within its written or printed terms the following: (1) The name of the licensed warehouseman and the designation, if any, of the warehouse; (2) the license number of the warehouse; (3) a statement whether the warehouseman is incorporated or unincorporated, and if incorporated, under what laws; (4) the lot number given to each lot of cold-pack fruit, in accordance with § 112.32; (5) a statement conspicuously placed, whether or not the cold-pack fruit is insured, and if insured, to what extent, by the warehouseman against loss by fire, lightning, or tornado; (6) a blank space designated for the purpose in which the kind of cold-pack fruit shall be stated; (7) a blank space in which the packer's code or other identifying marks shall be stated; (8) a blank space in which the number, kind, and size of the containers, if barrels, but if in cans the number of cases and size of cans, shall be stated; (9) the words "Negotiable" or "Nonnegotiable"; (10) the condition in which the barrels or other containers were received for storage; (11) a blank space in which to designate the gross, tare, and net inweights; (12) whether the receipt is an "original" or "copy", according to the nature of the receipt; and (13) in the event the relationship existing between the warehouseman and any depositor is not that of strictly disinterested custodianship, a statement setting forth the actual relationship.

(b) Every receipt, whether negotiable or nonnegotiable, issued for cold-pack fruit stored in a warehouse, shall specify a period, not exceeding one year, for which the cold-pack fruit is accepted for storage under the act and these regulations; *Provided*, That receipts covering berries packed with benzoate of soda shall in no event be issued for a period beyond April 30 following the year in which packed. Upon demand and surrender of the old receipt by the lawful holder thereof, at or before the expiration of the period specified, the warehouseman, upon such lawful terms and conditions as may be granted by him to other depositors of cold-pack fruit in his warehouse, if he then continue to act as a licensed warehouseman, shall issue a new licensed receipt for a further specified period, not exceeding six months; provided it is actually determined by a licensed inspector that the cold-pack fruit has not deteriorated and that it is in proper condition for storage.

(c) The grade stated in a receipt issued for cold-pack fruit stored in a licensed warehouse shall be stated as determined by the licensed inspector who last inspected the cold-pack fruit before the issuance of such receipt, and such receipt shall embody within its written or printed terms the following: (1) that the cold-pack fruit covered by the receipt was inspected, graded, and weighed by a licensed inspector, grader, and weigher; and (2) a form of indorsement which may be used by the depositor, or his authorized agent, for showing the ownership of, and liens, mortgages, or other encumbrances on the cold-pack fruit covered by the receipt.

(d) Whenever the grade is stated on a receipt issued for cold-pack fruit stored in a licensed warehouse, such grade shall be stated in accordance with §§ 112.66–112.68.

(e) If a warehouseman issues a receipt omitting the statement of grade on request of the depositor as permitted by section 18 of the act (42 Stat. 1284; 7 U.S.C. 260), such receipt shall have clearly and conspicuously stamped or written on the face thereof the words "Not graded on request of depositor."

(f) If a warehouseman issues a receipt under the act omitting any information not required to be stated, for which a blank space is provided in the form of the receipt, a line shall be drawn through such space to show that such omission has been made by the warehouseman.

§ 112.17 *Copies of receipts.* If copies are made of receipts, all such copies, except those issued in lieu of the original in case of lost or destroyed receipts, shall have clearly and conspicuously

printed or stamped thereon the words "Copy—Not Negotiable". If copies are not made, then skeleton copies bearing the same numbers as the corresponding original receipts shall be made, but such skeleton copies need not be marked "Copy—Not Negotiable".

§ 112.18 *Lost or destroyed receipts; bond for.* (a) In the case of a lost or destroyed receipt, if there be no statute of the United States or law of a State applicable thereto, a new receipt upon the same terms, subject to the same conditions, and bearing on its face the number and the date of the receipt in lieu of which it is issued and a plain and conspicuous statement that it is a duplicate issued in lieu of a lost or destroyed receipt, may be issued upon compliance with the conditions set out in paragraph (b) of this section.

(b) Before issuing such duplicate receipt the warehouseman shall require the depositor or other person applying therefor to make and file with the warehouseman (1) an affidavit showing that he is lawfully entitled to the possession of the original receipt, that he has not negotiated or assigned it, how the original receipt was lost or destroyed, and, if lost, that diligent effort has been made to find the receipt without success, and (2) a bond in amount double the value, at the time the bond is given, of the cold-pack fruit represented by the lost or destroyed receipt. Such bond shall be in the form approved for the purpose by the Secretary, or his designated representative, shall be conditioned to indemnify the warehouseman against any loss sustained by reason of the issuance of such duplicate receipt, and shall have as surety thereon (1) preferably a surety company which is authorized to do business, and is subject to service of process in a suit on the bond, in the State in which the warehouse is located, or (2) at least two individuals who are residents of such State and each of whom owns real property therein having a value, in excess of all exemptions and encumbrances, equal to the amount of the bond.

§ 112.19 *Approval of form of receipt.* No receipt shall be issued by a licensed warehouseman except it be (a) in form prescribed by the chief of the Service; (b) upon distinctive paper specified by him; (c) printed by a printer with whom the United States has a subsisting contract and bond for such printing; and (d) on paper manufactured by and procured from a manufacturer with whom the United States has a subsisting contract and bond for the manufacture of such paper.

§ 112.20 *Partial delivery of cold-pack fruit.* If a warehouseman deliver a part only of a lot of cold-pack fruit for which he has issued a negotiable receipt under the act, he shall take up and cancel such receipt and issue a new receipt bearing the same lot number for the undelivered portion of the cold-pack fruit. In addition to showing the information required by § 112.16, the new receipt shall also indicate the date and number of the receipt which it supersedes.

§ 112.21 *Return of receipt before delivery of cold-pack fruit.* Except as permitted by law or by these regulations, a warehouseman shall not deliver cold-pack fruit for which he has issued a negotiable receipt until the receipt has been returned to him and canceled; and shall not deliver cold-pack fruit for which he has issued a nonnegotiable receipt until such receipt has been returned to him, or he has obtained from the person lawfully entitled to such delivery, or his authorized agent, a written order therefor.

§ 112.22 *Signatures of persons authorized to direct delivery to be filed with warehouseman.* Each person to whom a nonnegotiable receipt is issued shall furnish the warehouseman with a statement in writing indicating the person or persons having power to authorize delivery of cold-pack fruit covered by such receipt, together with the bona fide signature of such person or persons. No licensed warehouseman shall honor an order for the release of cold-pack fruit covered by a nonnegotiable receipt until he has first ascertained that the person issuing the order has authority to order such release and that the signature of the releasing party is genuine: *Provided*, That if the holder of such nonnegotiable receipts agrees in writing to hold blameless both the warehouseman and bondsman for any loss that might result from improper delivery through receipt of an unauthorized telegram, deliveries may be made on receipt of telegraphic orders to be followed immediately with usual confirmation order.

§ 112.23 *Omission of grade; no compulsion by warehouseman.* No warehouseman shall, directly or indirectly, by any means whatever, compel or attempt to compel the depositor of any cold-pack fruit, stored in his licensed warehouse, to request the issuance of a receipt omitting the statement of grade.

DUTIES OF LICENSED WAREHOUSEMEN

§ 112.24 *Cold-pack fruit must be inspected.* No licensed warehouseman shall receive cold-pack fruit in his licensed warehouse for storage unless a licensed inspector has examined it and found it to be in proper condition and the warehouseman deems it suitable for storage: *Provided*, That under no condition shall fruit be accepted which, according to the certificate issued by the licensed inspector at the packing plant, was packed more than 12 hours prior to the fruit reaching the proper storage room of the warehouseman. Before accepting any lot of fruit offered for storage the warehouseman shall receive under seal a copy of the certificate issued by the inspector who inspected the fruit at the packing plant. Under no circumstances shall any container or any cold-pack fruit be accepted for storage under the act and these regulations unless the containers and the fruit both are in conformity with these regulations. If the cold-pack fruit when offered for storage is in cans, the warehouseman shall refuse to accept for storage all swells, leakers, rusty cans, or any cold-pack fruit known to be in violation of either State or Federal food and drug laws.

§ 112.25 *Insurance; requirements.* (a) Each warehouseman, when so requested in writing by the depositor or the lawful holder of the receipt for cold-pack fruit, shall, to the extent to which in the exercise of due diligence he is able to procure such insurance, keep such cold-pack fruit while in his custody insured in his own name, or arrange for its insurance otherwise, to the extent so requested, against loss or damage by fire, lightning, and/or tornado. Such insurance shall be covered by lawful policies issued by one or more insurance companies authorized to do such business, and subject to service of process in suits brought in the State where the warehouse is located. If the warehouseman is unable to procure such insurance to the extent requested, he shall orally or by telegraph, or by telephone immediately notify the person making the request. When insurance is not carried in the warehouseman's name, the receipt shall show that the cold-pack fruit is not insured by him. Nothing in this section shall be construed to prevent a warehouseman from adopting a rule that he will insure all cold-pack fruit against loss by fire, lightning, tornado, or breakdowns of machinery and equipment.

(b) Each warehouseman shall keep exposed conspicuously in the place prescribed by section 112.6 and at such other place as the chief of the Service, or his representative, may from time to time designate, a notice stating briefly the conditions under which cold-pack fruit will be insured against loss or damage by fire, lightning, and/or tornado.

(c) Each warehouseman shall take promptly such steps as may be necessary and proper to collect any moneys which may become due under contracts of insurance entered into by him for the purpose of meeting the requirements of these regulations, and shall, as soon as collected, pay promptly to the persons concerned any portion of such moneys which they may be entitled to receive from him.

§ 112.26 *Premiums; inspections; reports.* Each warehouseman shall, in accordance with his contracts with insurance and bonding companies for the purpose of meeting the insurance and bonding requirements of these regulations, pay such premiums, permit such reasonable inspections and examinations, and make such reasonable reports as may be provided for in such contracts.

§ 112.27 *Care of cold-pack fruit in storage.* Each warehouseman shall at all times exercise such care in regard to cold-pack fruit in his custody as a rea-

sonably careful owner would exercise under the same circumstances and conditions.

After the product leaves the sharp room he must at all times keep it stored in rooms having a temperature not in excess of 20° F.; provided, that in the case of berries packed with benzoate of soda a temperature not less than 32° F. not in excess of 40° F. must be maintained at all times, and temperature readings made at least four times in every 24 hours shall be kept.

§ 112.28 *Care of non-licensed cold-pack fruit, or other commodities.* If at any time a warehouseman shall handle cold-pack fruit other than for storage, or shall handle or store any other commodity, he shall so protect the same and otherwise exercise such care with respect to them as not to endanger the cold-pack fruit in his custody as a licensed warehouseman, or impair his ability to meet his obligations and perform his duties under the act and these regulations. If the warehouseman shall store commodities other than those for which he is licensed, a non-licensed receipt shall be issued, which shall contain in its terms a provision that said commodities are accepted for storage only until such time as the space which they may occupy may be needed for products for the storage of which the warehouseman is licensed. Under no circumstances shall any commodities for the storage of which the warehouseman is not licensed be stored if the storage of such commodities might adversely affect the commercial value of or impair the insurance on cold-pack fruit covered by licensed receipts.

§ 112.29 *Records to be kept in safe place.* Each warehouseman shall provide a metal fireproof safe, a fireproof vault, or a fireproof compartment in which he shall keep, when not in actual use, all records, books, and papers pertaining to the warehouse, including his current receipt book, copies of receipts issued, and canceled receipts, except that with the written consent of the chief of the Service, or his representative, upon a showing by such warehouseman that it is not practicable to provide such fireproof safe, vault, or compartment, he may keep such records, books, and papers in some other place of safety approved by the chief of the Service or his representative. All canceled receipts shall be arranged by the warehouseman in numerical order as soon as possible after their cancellation and shall be preserved in numerical order thereafter.

§ 112.30 *Warehouse charges.* A warehouseman shall not make any unreasonable or exorbitant charge for service rendered. Before a license to conduct a warehouse is granted under the act the warehouseman shall file with the Service a copy of his rules and a schedule of charges to be made by him if licensed. Before making any change in such rules or schedule of charges, he shall file with the Service a statement in writing showing the proposed change and the reasons therefor. Each warehouseman shall keep exposed conspicuously in the place prescribed by § 112.6, and at such other places, accessible to the public, as the chief of the Service or his representative may from time to time designate, a copy of his current rules and schedule of charges.

§ 112.31 *Business hours.* Each warehouseman shall have his facilities available continuously during the packing season for the purpose of receiving cold-pack fruit for storage and delivering cold-pack fruit out of storage, provided that no fruit shall be received during any period of a breakdown. At all times other than during the packing season the warehouseman shall keep conspicuously posted on the door of the public entrance to his office and to his warehouse a notice showing the hours during which the warehouse will be kept open. Such notice shall also indicate the name and address of the person authorized to make delivery upon lawful demand and surrender of the receipt.

§ 112.32 *Identification of lots.* Each warehouseman shall, upon acceptance for storage of any lot of cold-pack fruit, so store the same that the identity of the lot will be preserved. If several deliveries to the warehouse are made at daily or other intervals of time, the lot number given to the first delivery of a depositor shall be given to each delivery until the lot has been completed, provided subsequent deliveries to the warehouse are all piled with the first lot. To every such completed lot and to every uncompleted lot the warehouseman shall affix a lot card or identification tag to the beam, if any, above the stored goods, or to the nearest available place to such stored goods, and he shall also affix a lot card or identification tag to one of the outer rows of barrels or containers, which shall be at all times visible and a further means of identifying the lot with the receipt that covers it.

§ 112.33 *Lot card record.* The warehouseman shall indicate on the lot card or identification tag mentioned in § 112.32 (a) the name of the licensed warehouseman; (b) the lot number assigned to the lot of cold-pack fruit; (c) the number of containers in the lot; (d) the size of such containers; (e) the packer's code mark; (f) the dates received in storage; (g) the number of the receipt covering the lot; (h) the kind of cold-pack fruit that is in the containers, and the grade thereof when grade has been determined.

§ 112.34 *System of accounts.* Each warehouseman shall use for his warehouse a system of accounts, approved for the purpose by the chief of the Service, or his authorized representative, which will show for each lot of cold-pack fruit the name and address of the depositor, the lot number mentioned in section 112.32, the depositor's code and other identifying marks of the lot, the number of barrels or containers, the grade when grade is determined, the kind of cold-pack fruit in the lot, the size of the cans when cold-pack fruit is stored in such containers, or the number of cases that would be occupied by such cans if they were cased, the dates received into and delivered out of storage, and the receipts issued and canceled. Such accounts shall include a detailed record of all moneys received and disbursed and all effective insurance policies, if any. A separate record for each depositor shall be kept.

§ 112.35 *Reports.* Each warehouseman shall, from time to time, make such reports as the chief of the Service may require, on forms prescribed and furnished for the purpose by the Service, concerning the condition, contents, operation, and business of the warehouse.

§ 112.36 *Copies of reports to be kept.* Each warehouseman shall keep on file, as a part of the records of the warehouse, for such period as may be prescribed by the Service, an exact copy of each report submitted by such warehouseman under §§ 112.35, 112.48.

§ 112.37 *Canceled receipts; auditing.* Each warehouseman, when requested by the Service shall forward his canceled receipts for auditing to Washington or to such field offices of the Service as may be designated from time to time. For the purpose of this section, only such portion as the Service may designate of each canceled receipt, numbered to correspond with the actual receipt number, need be submitted.

§ 112.38 *Inspections and examinations of warehouses.* Each warehouseman shall permit any officer or agent of the Department of Agriculture, including inspectors under the Federal food and drugs act, authorized by the Secretary for the purpose, to enter and inspect or examine at any time any warehouse for the conduct of which such warehouseman holds a license, the office thereof, the books, records, papers, and accounts relating thereto, and the contents thereof, and shall furnish such officer or agent the assistance necessary to enable him to make such inspection or examination under this section.

§ 112.39 *Inspection of weighing, testing, measuring apparatus.* The apparatus used for determining the weight, quantity, or quality stated in a receipt or certificate shall be subject to examination by any officer or agent of the Department of Agriculture employed for such purpose. If the Service shall disapprove such apparatus, it shall not thereafter, unless such disapproval be withdrawn, be used in ascertaining the weight, quantity, or quality of cold-pack fruit for the purposes of the act and these regulations.

§ 112.40 *Care of warehouses.* Each warehouseman shall keep the stock stored in his licensed warehouse in an orderly manner, shall provide sufficient aisle space so as to permit easy and ready access to any and all lots of cold-pack fruit, and shall so store each lot as to facilitate sampling of cold-pack fruit and inspection for condition.

§ 112.41 *Signs of tenancy.* (a) Each licensed warehouseman shall, during the life of his license, maintain suitable signs on the licensed property in such a manner as will give ample notice of his tenancy of all buildings or parts thereof included in his license.

(b) Such signs shall be of appropriate size and design and shall include the following: (1) The name of the licensee, (2) the license number of the warehouse, (3) whether the warehouseman is owner or lessee, and (4) the words "Public Warehouse."

(c) Such other wording or lettering may appear in the sign or signs not inconsistent with the purpose of the act and these regulations, subject to the approval of the Service.

(d) Upon the expiration of his license, or during periods of suspension thereof, the warehouseman shall immediately remove such signs or portions thereof as may convey the impression that the warehouse is licensed.

(e) The warehouseman shall not permit any signs to remain on his licensed property which might lead to confusion as to the tenancy.

§ 112.42 *Deteriorating goods; handling.* If the warehouseman considers that any cold-pack fruit in his warehouse is out of condition, or becoming so, he shall direct a licensed inspector to examine the cold-pack fruit in question, and if such inspector finds such cold-pack fruit to be out of condition or becoming so, the warehouseman shall give immediate notice of the facts in the manner and to the persons specified in § 112.43 (a), (b), and (c).

§ 112.43 *Notification of deteriorating cold-pack fruit.* (a) The notice required by section 112.42 shall state (1) the warehouse in which the cold-pack fruit is stored; (2) the quantity, kind, and grade of the cold-pack fruit at the time the notice is given; (3) the actual condition of the cold-pack fruit as nearly as can be ascertained and the reason, if known, for such conditions; and (4) the outstanding receipts covering the cold-pack fruit in question, giving the number and date of each such receipt and the quantity, kind, and grade of the cold-pack fruit as stated in each receipt.

(b) A copy of such notice shall be delivered in person or shall be sent by mail (1) to the person holding the receipts if known to the warehouseman; (2) to the person who originally deposited the cold-pack fruit; (3) to any other persons known by the licensed warehouseman to be interested in the cold-pack fruit; (4) to the chief of the Service; and (5) public notice shall also be given by posting a copy of such notice at the place where the warehouseman is required to post his license. If either the holder of the receipts or the owner or owners, or both, of the cold-pack fruit are known to the warehouseman and can not in the regular course of the mails be reached within 12 hours, the warehouseman shall, whether or not requested so to do, also immediately notify such persons by telegraph or telephone at their expense.

(c) Any person interested in any cold-pack fruit or the receipt covering such fruit stored in a licensed warehouse, may, in writing, notify the warehouseman of his interest, and such warehouseman shall keep a record of that fact. If such person requests in writing that he be notified regarding the condition of any such cold-pack fruit and agrees to pay the cost of any telegraph or telephone toll charge, such warehouseman shall notify such person in accordance with such request.

(d) If the cold-pack fruit advertised in accordance with the requirements of this section have not been disposed of by the owner thereof within five days from the dispatch of notice of their being out of condition, the warehouseman in whose warehouse the cold-pack fruit is stored may sell the same at public auction at the expense and for the account of the owner, after giving five days' notice in the manner specified in paragraphs (a), (b) and (c) of this section.

(e) Nothing contained in this section shall be construed as relieving the warehouseman from properly caring for any cold-pack fruit after sending notification of its condition in accordance with this section.

§ 112.44 *Excess storage.* If at any time a warehouseman shall be offered for storage in his warehouse cold-pack fruit in excess of the licensed capacity as shown on his license, he shall not accept such cold-pack fruit until he has first secured authority through an amended license, and after such authority has been granted the warehouseman shall continue to arrange the cold-pack fruit so as not to obstruct free access thereto and the proper use of fire equipment provided for such warehouse.

§ 112.45 *Removal of cold-pack fruit from storage.* Except as may be permitted by law or these regulations a warehouseman shall not remove any cold-pack fruit from the warehouse, or the part thereof designated in the receipt, unless such receipt is first surrendered and canceled. If any cold-pack fruit is removed from the warehouse prior to the return and cancellation of the receipt, the warehouseman shall immediately notify the chief of the Service of such removal and the necessity therefor.

§ 112.46 *Signatures of persons to sign receipts to be filed with department.* Each warehouseman shall file with the department the name and genuine signature of each person authorized to sign warehouse receipts for the licensed warehouseman, and shall promptly notify the department of any changes as to persons authorized to sign, and shall file signatures of such persons.

§ 112.47 *Breakage of equipment; notification.* If at any time the equipment or machinery of a warehouse breaks down, the warehouseman shall immediately notify by telegraph the chief of the Service of such fact and advise when he expects to be able to place such machinery or equipment in proper working order.

§ 112.48 *Fire loss to be reported by telegraph.* If at any time a fire shall occur at or within any licensed warehouse, it shall be the duty of the warehouseman to notify immediately by telegraph the chief of the Service of the occurrence of such fire and the extent of damage.

§ 112.49 *Copies of inspection certificates to be filed.* When an inspection, grade, and weight certificate has been issued by a licensed inspector, grader, and weigher, a copy of such certificate shall be filed with the warehouseman in whose warehouse the cold-pack fruit covered by such certificate is stored, and such certificate shall become a part of the records of the warehouseman.

FEES

§ 112.50 *Warehouse license fees.* There shall be charged, assessed, and collected a fee of $10 for each warehouseman's license or any amendment thereto, and a fee of $3 for each license issued to an inspector.

§ 112.51 *Warehouse inspection fees.* There shall be charged, assessed, and collected for each original examination or inspection of a warehouse under the act, when such examination or inspection is made upon application by a warehouseman, a fee at the rate of $1 for each 50,000 pounds of the storage capacity, or fraction thereof, determined in accordance with § 112.12 (a), but in no case less than $10 nor more than $200, and, for each reexamination or reinspection applied for by such warehouseman, a fee based on the extent of the reexamination or reinspection, proportioned to but not greater than that prescribed for the original examination or inspection.

§ 112.52 *Advance deposit.* Before any warehouseman's license or amendment thereto, or any inspector's license, is granted, or an original examination or inspection, or reexamination or reinspection, applied for by a warehouseman, is made, pursuant to these regulations, the warehouseman and/or inspector shall deposit with the Service the amount of the fee prescribed therefor. Such deposit shall be made in the form of a check, certified if required by the Service, draft, or post office or express money order, payable to the order of "Treasurer of the United States".

§ 112.53 *Return of excess deposit.* The Treasurer of the United States shall hold in a special deposit account each advance deposit made under § 112.52 until the fee, if any, is assessed and he is furnished by the Service with a statement showing the amount thereof and against whom assessed. Any part of such advance deposit which is not required for the payment of any fee assessed shall be returned to the party depositing the same.

LICENSED INSPECTORS, GRADERS, AND WEIGHERS

§ 112.54 *Application forms.* (a) Application for license to inspect, grade, and weigh cold-pack fruit under the act shall be made to the chief of the Service on forms furnished for the purpose by him.

(b) Each such application shall be signed by the applicant, shall be verified by him under oath or affirmation administered by a duly authorized officer, and shall contain (1) the name and location of the warehouse or warehouses licensed, or for which application for license has been made under the act, in which cold-pack fruit sought to be inspected, graded, and weighed under such license is or may be stored; (2) a statement from the warehouseman conducting such warehouse showing whether the applicant is competent and is acceptable to such warehouseman for the purpose; (3) satisfactory evidence that he has had the necessary experience to properly inspect, grade, and weigh the kind of cold-pack fruit for which a license is sought; (4) a statement by the applicant that he agrees to comply with and abide by the terms of the act and these regulations so far as the same may relate to him; and (5) such other information as the Service may deem necessary.

§ 112.55 *Examination of applicants.* Each applicant for a license as an inspector, grader, and weigher, and each licensed inspector, grader, and weigher, shall whenever requested by an authorized agent of the Department of Agriculture designated by the chief of the Service for the purpose, submit to an examination or test to show his ability to perform properly the duties for which he is applying for a license or for which he has been licensed.

§ 112.56 *Posting of license.* Each licensed inspector, grader, and weigher shall keep his license conspicuously posted in the office where the receipts are issued.

§ 112.57 *Duties of licensees.* Each inspector, grader, and weigher, when requested, shall, without discrimination, as soon as practicable and upon reasonable terms, inspect, grade, and weigh and certificate the condition, grade, and weight of cold-pack fruit stored or to be stored in a licensed warehouse, if such cold-pack fruit be offered to him under such conditions as permit proper inspecting, grading and weighing. Each such licensee shall give preference to persons who request his services as such over persons who request his services in any other capacity. No inspection, grade, or weight certificate shall be issued under the act for cold-pack fruit not stored or not to be stored in a licensed warehouse.

§ 112.58 *Inspector's, grader's, and weigher's certificate; form.* (a) Each inspection, grade, and weight certificate issued under the act by a licensed inspector, grader, and weigher shall be in a form approved for the purpose by the Service and shall embody within its written or printed terms (1) the caption "United States Warehouse Act Cold-Pack Fruit Inspection, Grade, and Weight Certificate"; (2) whether it is an original, duplicate, or other copy; (3) the name and location of the warehouse in which the cold-pack fruit is or is to be stored; (4) the place where and the date and hour when the cold-pack fruit was packed and inspected; (5) the number of barrels or other containers, provided that if the cold-pack fruit is in cans, the size of the cans and the number of cases; (6) the grade of the cold-pack fruit; (7) the kind of cold-pack fruit; (8) the gross, tare, and net weight of the cold-pack fruit when packed; (9) the depositor's name, code mark, and any other identification mark or marks; (10) a statement that the certificate is issued by a licensed inspector, grader, and weigher under the United States warehouse act and these regulations; (11) a blank space in which any general remarks on the condition, grade, weight, or other pertinent information may be shown; (12) any other matter not inconsistent with the act or these regulations, provided the approval of the Service is first obtained; (13) a blank space in which the licensed inspector, grader, and weigher at the place where the cold-pack fruit is packed shall indicate the exact date and hour when the cold-pack fruit described in the certificate left the packing plant for the licensed warehouse; (14) a blank space in which the licensed inspector, grader, and weigher at the licensed warehouse shall certify to the exact date and hour when the cold-pack fruit described in the certificate was received at the licensed warehouse and entered the sharp room, and the lot number assigned to it by the warehouseman. Under no circumstances shall certificates be issued for products known to be in violation of Federal or State food and drug laws.

(b) When cold-pack fruit leaves the packing house for the licensed warehouse, the licensed inspector, grader, and weigher who inspected, graded, and weighed said shipment at the packing plant shall insert in the certificate the exact date and hour when the fruit covered by the certificate left the packing plant and shall send under sealed cover, by the quickest available means, the original certificate or certificates describing said shipment, and one copy of each original certificate, to the licensed inspector, grader, and weigher at the licensed warehouse to which said shipment is consigned, who in turn shall insert at the proper place on said certificate the information required by § 112.58 (a) (14) and thereupon deliver the original certificate to the licensed warehouseman with whom the fruit is to be stored.

§ 112.59 *Copies of certificates to be kept.* Each licensed inspector, grader, and weigher shall keep for a period of one year, in a place accessible to persons financially interested in the cold-pack fruit, a copy of each certificate issued by him under these regulations and shall file a copy of each such certificate with the warehouse in which the cold-pack fruit covered by the certificate is stored.

§ 112.60 *Licensees to permit and assist in examination.* Each licensed inspector, grader, and weigher shall permit any officer or agent of the Department of Agriculture, authorized by the Secretary for the purpose, to inspect or examine at any time his books, papers, records, and accounts relating to the performance of his duties under the act and these regulations, and shall, with the consent of the warehouseman concerned, assist any such officer or agent in the inspection or examination of records mentioned in § 112.32, as far as any such inspection or examination relates to the performance of the duties of such licensed inspector, grader, and weigher under the act and these regulations.

§ 112.61 *Reports.* Each licensed inspector, grader, and weigher shall from time to time, when requested by the Service, make reports on forms furnished for the purpose by the Service, bearing upon his activities as such licensed inspector, grader, and weigher.

§ 112.62 *Licenses; suspension; revocation.* Pending investigation, the Secretary, or his designated representative, may, whenever he deems necessary, suspend the license of an inspector temporarily without hearing. Upon a written request and a satisfactory statement of reasons therefor, submitted by the inspector, or when the inspector has ceased to perform such services at the warehouse, the Secretary, or his designated representative, may, without hearing, suspend or revoke the license issued to such inspector. The Secretary, or his designated representative, may, after opportunity for hearing, when possible, has been afforded in the manner described in this section, suspend or revoke a license issued to an inspector, grader, and weigher, when such inspector, grader, and weigher has in any manner become incompetent or incapacitated to perform the duties of a licensed inspector, grader, and weigher. As soon as it shall come to the attention of a warehouseman that any of the conditions mentioned in this section exists, it shall be his duty to notify in writing the Service. Before the license of any inspector, grader, and weigher is suspended or revoked pursuant to section 12 of the act (46 Stat. 1464; 7 U.S.C. 253), such licensee shall be furnished by the Secretary, or by his representative, a written statement specifying the charges, and shall be allowed a reasonable time within which he may answer the same in writing and apply for a hearing, an opportunity for which shall be afforded in accordance with § 112.73.

§ 112.63 *Return of suspended or revoked licenses.—Termination of license.* (a) If a license issued to an inspector, grader, and weigher is suspended or re-

voked by the Secretary, or his designated representative, it shall be returned to the Secretary. At the expiration of any period of suspension of a license, unless in the meantime it be revoked, the dates of the beginning and termination of the suspension shall be indorsed thereon, and it shall be returned to the inspector, grader, and weigher to whom it was originally issued, and it shall be posted as prescribed in § 112.56: *Provided*, That in the discretion of the chief of the Service a new license may be issued without reference to such suspension.

(b) Any license issued to an inspector shall automatically be suspended or terminated as to any warehouse whenever the license of such warehouse shall expire or be suspended or revoked. Thereupon the license of such inspector, grader, and weigher shall be returned to the Secretary. If such license is appliable to warehouses other than those for which the licenses have been suspended or revoked, the Secretary or his designated representative shall issue a new license to the inspector, omitting the names of the warehouses for which licenses have been so suspended or revoked. Such new license shall be posted as prescribed in § 112.56.

§ 112.64 *Lost or destroyed licenses.* Upon satisfactory proof of the loss or destruction of a license issued to an inspector a duplicate thereof may be issued under the same number.

§ 112.65 *Unlicensed inspector, grader, and weigher; misrepresentation.* No person shall in any way represent himself to be an inspector, grader, or weigher under the act unless he holds an unsuspended or unrevoked license under the act.

COLD-PACK FRUIT INSPECTION AND CLASSIFICATION

§ 112.66 *Classification; statement of.* Whenever the kind, grade or other class or condition of cold-pack fruit is required to be or is stated for the purpose of the act and these regulations, it shall be stated in accordance with §§ 112.66–112.68.

§ 112.67 *Standards to be used.* Until such time as official marketing grades of the United States have been promulgated and are in effect, for the purpose of administering this act and these regulations, the kind and grade of cold-pack fruit shall be stated as far as applicable (a) in accordance with standards, if any, adopted by the Secretary of Agriculture under the Federal food and drugs act (b) in the absence of Federal standards, in accordance with the State standards, if any, established by the State in which the warehouse is located; (c) in the absence of any State standards, in accordance with the standards, if any, adopted by any cold-pack fruit organization or by the cold-pack-fruit trade generally in the locality in which the warehouse is located, subject to the disapproval of the chief of the Service; or (d) in the absence of the aforesaid standards, in accordance with any standards approved by the chief of the Service.

§ 112.68 *Statement of kind—grade—condition.* Whenever the kind, grade, or other class or condition of cold-pack fruit is stated for the purposes of this act and these regulations, the terms used shall be correctly applied and shall be so selected as not to convey a false impression of the cold-pack fruit. In case of doubt as to the kind, grade, or condition of a given lot of cold-pack fruit, a determination shall be made of such facts by drawing samples fairly representative of the contents of the lot of cold-pack fruit offered for storage.

APPEAL OF GRADES

§ 112.69 *Procedure.* (a) If a question arises as to whether the kind, grade, or condition of cold-pack fruit was correctly stated in a receipt, or inspection certificate issued under the act or these regulations, the warehousemen concerned or any person financially interested in the cold-pack fruit involved may, after reasonable notice to the other party, submit the question to the chief of the Service, who may appoint a committee to make a determination. The decision of the committee shall be final, unless the chief shall direct a review of the question. Immediately upon making its decision, the committee shall issue a certificate embodying its findings to the appellants and to the licensee or licensees involved.

(b) If the decision of the committee be that the kind, grade, or condition was not correctly stated the receipt or certificate involved shall be returned to and be cancelled by the licensee who issued it, and the licensee shall issue in lieu thereof a new receipt or certificate embodying therein the statement of kind, grade, or condition in accordance with the findings of the committee.

(c) All necessary and reasonable expenses of such determination shall be borne by the losing party, unless the chief of the Service or his representative shall decide that the expense shall be prorated between the parties.

MISCELLANEOUS

§ 112.70 *Bonds required.* Every person applying for a license or licensed under section 9 of the act (46 Stat. 1464; 7 U.S.C. 248), shall, as such, be subject to all portions of these regulations except § 112.5, so far as they may relate to warehousemen. If there is a law of any State providing for a system of warehouses owned, operated, or leased by such State, a person applying for a license under section 9 of the act, to accept the custody of cold-pack fruit and to store the same in any of said warehouses, may in lieu of a bond or bonds, complying with §§ 112.11–112.12, file with the Secretary or his designated representative a single bond meeting the requirements of the act and these regulations, in such form and in such amount not less than $5,000, as he shall prescribe, to insure the performance by such person with respect to the acceptance of the custody of cold-pack fruit and its storage in the warehouses in such system for which licenses are or may be issued, of his obligations arising during the periods of such licenses, and in addition, if desired by the applicant, during the periods of any modifications or extensions thereof. In fixing the amount of such bond consideration shall be given, among other appropriate factors, to the character of the warehouses involved, their actual or contemplated capacity, the bonding requirements of the State, and its liability with respect to such warehouses. If the Secretary or his designated representative shall find the existence of conditions warranting such action, there shall be added to the amount of the bond so fixed a further amount, fixed by him, to meet such conditions.

§ 112.71 *Publications.* Publications under the act and these regulations shall be made in Service and Regulatory Announcements of the Agricultural Marketing Service and such other media as the chief of that Service may from time to time designate for the purposes.

§ 112.72 *Information of violations.* Every person licensed under the act shall immediately furnish the chief of the Service any information which comes to the knowledge of such persons tending to show that any provision of the act or these regulations has been violated.

§ 112.73 *Procedure in hearings.* For the purpose of a hearing under the act and these regulations, except § 112.69, the licensee involved shall be allowed a reasonable time, fixed by the Secretary or by an official of the Department of Agriculture designated by him for the purpose, within which affidavits and other proper evidence may be submitted. If requested by the licensee within such time, an oral hearing, of which reasonable notice shall be given, shall be held before, and at a time and place fixed by, the Secretary or an official of the Department of Agriculture designated by him for the purpose. The testimony of the witnesses at such oral hearing shall be upon oath or affirmation administered by the official before whom the hearing is held, when required by him. Such oral hearing may be adjourned by him from time to time. After reasonable notice to all parties concerned the deposition of any witness may be taken at a time and place and before a person designated for the purpose by the Secretary or an official of the Department of Agriculture authorized by the Secretary. Every written entry in the records of the Department of Agriculture made by an officer or employee thereof in the course of his official duty, which is relevant to the issue involved in a hearing, shall be admissible as prima facie evidence of the facts stated therein without the production of such officer or employee. Copies of all papers and all the evidence submitted or considered in such hearing shall be made a part of the records of the Department of Agriculture. The records and, when there has been an oral hearing other than

by the Secretary, the recommendation of the official holding such oral hearing shall be transmitted to the Secretary for his consideration. Each party shall pay all expenses contracted by him in connection with any hearing under this section.

§ 112.74 *Combination license.* A license may be issued for the storage of two or more agricultural products in a single warehouse. Where such a license is desired, a single application, inspection, bond, record, report or other paper, document or proceeding relating to such warehouse, shall be sufficient unless otherwise directed by the chief of the Service.

§ 112.75 *Bond, fees, for combination license.* Where such license is desired, the amount of the bond, net assets, and inspection and license fees shall be determined by the chief of the Service in accordance with the regulations applicable to the particular agricultural product which would require the largest bond and the greatest amount of net assets and of fees if the full capacity of the warehouse was used for its storage.

§ 112.76 *Amendments.* Any amendment to, or revision of, these regulations, unless otherwise stated therein, shall apply in the same manner to persons holding licenses at the time it becomes effective as it applies to persons thereafter licensed under the act.

Done at Washington, D. C. this 2d day of July 1940. Witness my hand and the seal of the Department of Agriculture.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 40-2758; Filed, July 3, 1940; 11:03 a. m.]

PART 201—FEDERAL SEED ACT REGULATIONS AND NOTICES

AMENDMENT

By virtue of authority vested in the Secretary of Agriculture by section 203 (c) of the Federal Seed Act of August 9, 1939 (53 Stat. 1275), and having found that the time interval between harvesting and fall sowing is not sufficient to assure the completion of a normal germination test of freshly harvested seed of Kentucky bluegrass (*Poa pratensis*) and bentgrass (*Agrostic palustris, Agrostis canina, Agrostis tenuis*) by methods now generally used, I hereby promulgate the following regulation:

§ 201.22 a *Exemptions for labeling as to germination.* The requirements of Sec. 201 (a) (8) of the Federal Seed Act of August 9, 1939 as to labeling seed for germination when transported or delivered for transportation in interstate commerce for seeding purposes shall not apply to the 1940 crop of seed of Kentucky bluegrass (*Poa pratensis*) and bentgrass (*Agrostis palustris, Agrostis canina, Agrostis tenuis*) during the period beginning August 5, 1940 and ending September 30, 1940.

Done at Washington, D. C., this 2d day of July 1940. Witness my hand and the seal of the Department of Agriculture.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 40-2760; Filed, July 3, 1940; 11:04 a. m.]

TITLE 10—ARMY: WAR DEPARTMENT

CHAPTER II—AIRCRAFT

PART 22—ASSISTANCE TO CIVIL AIRCRAFT [1]

§ 22.1 *Authority.* Air navigation facilities owned or operated by the War Department may be made available for the use of civil aircraft as prescribed in § 52.18 (d). (Sec. 5 (c), 44 Stat. 571; 49 U.S.C. 175 (c).) [Par. 2, AR 95-50, Mar. 14, 1927, as amended by Cir. 67, W.D., June 29, 1940]

[SEAL] E. S. ADAMS,
Major General,
The Adjutant General.

[F. R. Doc. 40-2767; Filed, July 3, 1940; 11:31 a. m.]

TITLE 14—CIVIL AVIATION

CHAPTER I—CIVIL AERONAUTICS AUTHORITY

[Amendment 1, § 285.1, Economic Regulations]

CONFERENCE PROCEDURE

At a session of the Civil Aeronautics Authority held at its office in Washington, D. C., on the 24th day of May 1940.

Acting pursuant to the authority vested in it by the Civil Aeronautics Act of 1938, particularly section 205 (a) of said Act, and finding that its action is desirable in the public interest and is necessary to carry out the provisions of, and to exercise and perform its powers and duties under said Act, the Civil Aeronautics Authority hereby amends the Economic Regulations as follows:

Effective May 24, 1940, § 285.1 of the Economic Regulations is amended by adding thereto Rule 10, to read as follows:

"RULE 10

"CONFERENCE PROCEDURE

"In any proceeding, the examiner designated to conduct the hearing, or any other person designated by the Chief Examiner or by the Authority for the purpose of this rule, may direct counsel for the parties to such proceeding to appear before him for a conference to consider the following:

"(1) The formulation of the issues to be considered at the hearing by:

"(a) Agreement of the parties,

"(b) Amendment of the application, complaint, or petition,

"(c) Any other appropriate means;

"(2) The simplification of proof by:

"(a) Stipulations concerning matters of which the Authority can take notice, the admission in evidence of particular facts or documents, or any other appropriate matter,

"(b) Limitation of the number of witnesses,

"(c) The preparation of exhibits, and the use thereof in lieu of oral testimony whenever possible,

"(d) Any other appropriate means;

"(3) The exchange prior to the date of the hearing of exhibits proposed to be introduced therein and any other material which will expedite the conduct of the same;

"(4) Such other matters as may, in the opinion of the person conducting the conference, aid in the conduct and disposition of the proceeding.

"Notice of the time and place of the conference shall be given by letter or otherwise to all parties to the proceeding.

"The person conducting the conference may require the exchange of particular exhibits in advance of the date set for the hearing, and if any exhibits are not exchanged in advance as required, or as agreed upon by counsel at the conference, the hearing shall be subject to postponement until such exchange is completed.

"The person conducting the conference shall prepare a report of the same, which shall be served upon counsel for all of the parties and made of record. Counsel may object to the description of anything which occurred at the conference within five days after the receipt of the report, and such report may, in the discretion of the person preparing the same, be revised in accordance therewith. If revised, the report shall again be served upon counsel and made of record in the same manner as the original report. Exceptions may be taken on the basis of any written objection submitted within the time prescribed which has not been met by a revision of the report. Such report shall constitute the official account of all that transpired at the conference, and shall control the subsequent course of the proceeding, but it may be reconsidered and modified at any time to prevent injustice."

By the Authority.

[SEAL] PAUL J. FRIZZELL,
Secretary.

[F. R. Doc. 40-2769; Filed, July 3, 1940; 12 m.]

[1] Section 22.1 is amended.

TITLE 18—CONSERVATION OF POWER

CHAPTER I—FEDERAL POWER COMMISSION

[Order No. 70–A]

PRESCRIBING THE FILING OF NATIONAL DEFENSE POWER STATEMENTS ON F.P.C. FORM NO. 169

JUNE 28, 1940.

The Commission, pursuant to the authority and direction contained in Sections 311, 309, and other appropriate provisions of the Federal Power Act, and to enable the Commission to gather information bearing upon, and to assist in the meeting of emergencies in the demand for or utilization of electric energy, *orders* that:

§ 210.52 *Monthly supplement to power system statements.* (a) The accompanying F.P.C. Form No. 169,[1] including the instructions and schedules contained therein, be and the same is hereby approved and prescribed;

(b) Each and every corporation, person, agency, authority, or other legal entity or instrumentality, whether public or private, which operates facilities for the generation, or transmission, or distribution of electric energy, to whom this order and F.P.C. Form No. 169 shall be addressed, or upon whom this order and F.P.C. Form No. 169 shall be served, shall prepare and file with the Commission on or before the date indicated by said F.P.C. Form No. 169, a statement or statements in such form as is required by the instructions contained therein, setting forth the answers to the questions therein indicated and furnishing the information called for.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 40–2755; Filed, July 3, 1940; 10:08 a. m.]

TITLE 20—EMPLOYEES' BENEFITS

CHAPTER II—RAILROAD RETIREMENT BOARD

REGULATIONS UNDER THE RAILROAD UNEMPLOYMENT INSURANCE ACT

Pursuant to the authority contained in Section 12 of the Act of June 25, 1938 (52 Stat. 1094, 1107; 45 U.S.C., Sup. IV, 362) as amended by the Act of June 20, 1939 (53 Stat. 845; Public No. 141, 76th Congress, First Session), subsection (b) of § 328.11[2] of the Regulations of the Railroad Retirement Board under such Act is amended by Board Order 40–347 dated June 27, 1940, to read as follows:

(b) *Definition of half-month.* The term "Half-month", with respect to any employee, means any registration period; except that in the case of an employee who has:

(1) a half-month which has been, or may be, credited to him as a waiting period, and

(2) two subsequent registration periods, the first of which contains fewer than eight unemployment days that have not previously been included in a half-month, and

(3) a period of fifteen consecutive calendar days, which begins in the first and ends in the second of such two registration periods, and contains eight or more unemployment days,

the half-month shall be the first period of fifteen consecutive calendar days that begins with an unemployment day in the first of the two registration periods or with the first day of the second of the two registration periods, ends in the second of the two registration periods, and includes as many unemployment days as any other fifteen-consecutive-day-period so beginning and ending. No day shall be included in more than one half-month except that in the case of any half-month that begins prior to, and ends after, the last day of a benefit year, any days in such half-month subsequent to the last day of the benefit year may be included in the last half-month of such benefit year (but not as days of unemployment) and in a registration period beginning with the first of such days for which he registers.

By Authority of the Board.

[SEAL] JOHN C. DAVIDSON, *Secretary.*

Dated, July 2, 1940.

[F. R. Doc. 40–2757; Filed, July 3, 1940; 10:43 a. m.]

[1] 5 F.R. 2112.
[2] Filed as a part of the original document.

TITLE 26—INTERNAL REVENUE

CHAPTER I—BUREAU OF INTERNAL REVENUE

[T. D. 4979]

INCOME TAX

WITHHOLDING UNDER SECTIONS 143 AND 144 OF THE INTERNAL REVENUE CODE AS AMENDED BY THE REVENUE ACT OF 1940; REGULATIONS 103 AMENDED

To Collectors of Internal Revenue and Others Concerned:

In order to conform Regulations 103[1] (Part 19, Title 26, Code of Federal Regulations, 1940 Sup.), relating to the income tax under the Internal Revenue Code, to section 5 and section 202 of the Revenue Act of 1940, (Public No. 656, Seventy-sixth Congress, Third Session) amending section 143 and section 144 of the Internal Revenue Code, such Regulations are amended as follows:

(1) The following is inserted immediately preceding § 19.143–1:

[1] 5 F.R. 348, 437, 569.

SEC. 5. WITHHOLDING OF TAX AT SOURCE.

(a) Section 143 of the Internal Revenue Code is amended by striking out "10 per centum" wherever occurring therein and inserting in lieu thereof "15 per centum".

* * * * *

(c) The amendments made by this section shall take effect on June 26, 1940.

SEC. 202. RATES OF WITHHOLDING.

Section 143 of the Internal Revenue Code is amended by inserting at the end thereof the following new subsection:

"(h) *Rates until January 1945.* For the period after June 25, 1940, and before January 1, 1945, the rate provided in this section and section 144, of 15 per centum shall be 16½ per centum. This subsection or section 15 shall not apply in any case where its operation would be contrary to any treaty obligation of the United States, nor to a resident of, or a corporation organized under the laws of, a contiguous country so long as there is in effect with such country a treaty, ratified prior to August 26, 1937, relating to rates of income tax."

(2) Section 19.143–1 is amended as follows:

(a) By inserting after the words "10 percent" wherever appearing therein the words,

"(15 percent on and after June 26, 1940 except as otherwise provided herein)"

(b) By inserting at the end of the first paragraph of subsection (a) the following sentence:

"However, in accord with Article VII of the tax convention and protocol between the United States and Sweden, effective January 1, 1940, the rate of withholding shall, for a period of at least two years beginning with such date, be 10 percent with respect to dividends paid to residents of Sweden."

(c) By striking out the words "Sorting Section" in the eighth paragraph of subsection (a) and inserting in lieu thereof the words, "Withholding Returns Section".

(d) By adding at the end of subsection (b) the following new subsection:

"(c) *Withholding on and after June 26, 1940 and prior to January 1, 1945.* With respect to income paid on or after June 26, 1940, and prior to January 1, 1945, the rate of withholding (except with respect to income paid to residents of Canada and dividends paid to residents of Sweden) is 16½ percent instead of 15 percent."

(3) Section 19.143–3 is amended as follows:

(a) By striking out the words "Sorting Section" wherever occurring therein and inserting in lieu thereof the words, "Withholding Returns Section".

(b) By inserting in the last paragraph thereof immediately after "$1,000" the following words: ", or $800 for taxable years beginning after December 31, 1939,".

(4) Section 19.143–7 is amended by inserting in lieu of the last sentence of

the first paragraph thereof the following sentence:

"If Form 1000 is modified to show the name and address of a fiscal or paying agent in the United States (see § 19.143–5), Forms 1012 and 1013 should be likewise modified."

(5) The following is inserted immediately preceding § 19.144–1:

SEC. 5. WITHHOLDING OF TAX AT SOURCE.

* * * * *

(b) Section 144 of the Internal Revenue Code is amended by striking out "except that in the case of dividends the rate shall be 10 per centum, and" and by striking out "of 10 per centum."

(c) The amendments made by this section shall take effect on June 26, 1940.

SEC. 202. RATES OF WITHHOLDING.

Section 143 of the Internal Revenue Code is amended by inserting at the end thereof the following new subsection:

"(h) *Rates until January 1945.* For the period after June 25, 1940, and before January 1, 1945, the rate provided in this section and section 144, of 15 per centum shall be 16½ per centum. This subsection or section 15 shall not apply in any case where its operation would be contrary to any treaty obligation of the United States, nor to a resident of, or a corporation organized under the laws of, a contiguous country so long as there is in effect with such country a treaty, ratified prior to August 26, 1937, relating to rates of income tax."

(6) Section 19.144–1 is amended as follows:

(a) By inserting in the first paragraph thereof the word "and" immediately preceding "(2)", by striking out ", and (3) dividends" and by inserting at the end of such paragraph the following sentence:

"However, in accord with Article VII of the tax convention and protocol between the United States and Sweden, effective January 1, 1940, the rate of withholding shall, for a period of at least two years beginning with such date, be 10 percent with respect to dividends paid to a corporation or other entity created or organized under the laws of Sweden."

(b) By inserting in the third paragraph after the words "10 percent" wherever occurring therein the words,

"(15 percent on and after June 26, 1940 except as otherwise provided herein)".

(c) By adding at the end thereof the following new paragraph:

"With respect to income paid on or after June 26, 1940, and prior to January 1, 1945, the rate of withholding (except with respect to dividends paid to corporations organized under the laws of Canada and to corporations or other entities created or organized under the laws of Sweden) is 16½ percent instead of 15 percent."

(7) Section 19.144–2 is amended as follows:

(a) By striking out the words "Sorting Section" in the first paragraph and inserting in lieu thereof the words, "Withholding Returns Section".

(b) By inserting, immediately preceding the table in the last paragraph thereof, the following heading:

"For the period prior to June 26, 1940"

(c) By inserting in the last column of line numbered 7 of the table the symbol "(2)" and adding a footnote to such table as follows:

"(2) Interest on any non-corporate security the owner of which is unknown to the withholding agent is subject to withholding at the rate of 10 percent."

(d) By inserting at the end thereof the following new paragraph:

"The following table of withholding rates under the Internal Revenue Code as amended and the tax conventions between the United States and Canada and United States and Sweden has been prepared for the purpose of making a summary of such rates readily available to withholding agents:"

For the period on and after June 26, 1940 and prior to January 1, 1945

CORPORATE BOND INTEREST

Classes of taxpayers	With tax-free covenant and issued before Jan. 1, 1934		Without tax-free covenant or issued on or after Jan. 1, 1934, with tax-free covenant	Salary or other compensation for personal services	Other fixed or determinable annual or periodical income, including dividends, from sources within the United States
	If corporation assumes over 2% of the tax	If corporation assumes not over 2% of the tax			
	Percent	*Percent*	*Percent*	*Percent*	*Percent*
1. Citizen or resident individual, fiduciary, or partnership	2	2			
2. Nonresident individual, fiduciary, or partnership (except as stated in item 5 below)	2	16½	16½	[1] 16½	[2] 16½
3. Domestic corporation or resident foreign corporation					
4. Nonresident foreign corporation (except as stated in item 6 below)	2	16½	16½	16½	[2] 16½
5. Individual, fiduciary, or partnership, resident of Canada	2	5	5	(1)	5
6. Nonresident corporation organized under laws of Canada	2	16½	16½	16½	[3] 16½
7. Unknown owner	2	16½	16½		(4)

[1] Salary or compensation for personal services rendered in the United States is not subject to withholding in the case of nonresident aliens, residents of Canada or Mexico, who enter and leave the United States at frequent intervals.

[2] In the case of a resident of Sweden or a corporation or other entity organized under the laws of Sweden the rate with respect to dividends is 10 percent for at least two years beginning January 1, 1940.

[3] In the case of dividends paid to a corporation organized under the laws of Canada, the rate is 5 percent.

[4] Interest on any non-corporate security the owner of which is unknown to the withholding agent is subject to withholding at the rate of 16½ percent.

(8) Section 19.262–4 is amended as follows:

(a) By inserting after the words "10 percent" wherever appearing therein the words,

"(15 percent on and after June 26, 1940, except as otherwise provided herein)".

(b) By striking out the last sentence thereof and inserting in lieu thereof the following:

"As to reduction in rate of withholding (a) in the case of nonresident alien individuals who are residents of Canada or of Sweden, see § 19.143–1; (b) in the case of nonresident foreign corporations organized under the laws of Canada, or corporations or other entities created or organized under the laws of Sweden, see § 19.144–1.

"With respect to income paid on or after June 26, 1940, and prior to January 1, 1945, the rate of withholding (except with respect to dividends paid to residents of, or corporations organized under the laws of, Canada or to residents of, or to corporations or other entities created or organized under the laws of, Sweden) is 16½ percent instead of 15 percent."

(This Treasury Decision is issued under the authority of sections 143 and 144 of the Internal Revenue Code (53 Stat. 60, 62), as amended by section 5 and section 202 of the Revenue Act of 1940 (Public, No. 656, Seventy-sixth Congress, third session); and section 62 of the said Internal Revenue Code, 53 Stat. 32.)

[SEAL] GUY T. HELVERING,
Commissioner of Internal Revenue.

Approved July 1, 1940.

HERBERT E. GASTON,
Acting Secretary of the Treasury.

[F. R. Doc. 40–2748; Filed, July 2, 1940; 3:22 p. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

CHAPTER II—CORPS OF ENGINEERS, WAR DEPARTMENT

PART 204—DANGER ZONE REGULATIONS[1]

§ 204.60 *Charleston Harbor, S. C.; U. S. Military Reservations; Fort Moultrie, Fort Sumter and Marshall Reservation.*

THE DANGER ZONE

(a) (1) The artillery firing range of Fort Moultrie includes the waters of

[1] Section 204.60 is added.

Charleston Harbor and approaches within a sector described as follows: Beginning at Fort Sumter: Thence due south 8,300 yards; thence south 30° west 8,000 yards to a point 20,000 yards from Marshall Reservation, thence along this arc (20,000 yards from Marshall Reservation) in an easterly direction to its intersection with a line due south from Fort Sumter; thence south 3,100 yards to a point 20,000 yards from Fort Sumter; thence easterly along an arc with a radius of 20,000 yards, using Fort Sumter as a center, until it intersects an arc with a radius of 20,000 yards using Marshall Reservation as a center; thence easterly and northerly along this latter arc until it intersects a line due east of Marshall Reservation; thence due west 20,000 yards to Marshall Reservation; thence westerly along the shore line to Battery Lord; thence south 20° west to the intersection with a line due east from Fort Sumter; thence due west to point of beginning.

(2) The small arms and anti-aircraft firing ranges include the waters of Charleston Harbor and approaches within a sector described as follows: Beginning at a point at the south end of Sullivans Island; thence south 50° east for 6,000 yards to Bell Buoy #12, which is located southeast of the outer end of the North Jetty; thence along a line 6,000 yards seaward of and paralleling the shore line of Sullivans Island, in a northeasterly direction, to a point 6,000 yards due east of Marshall Reservation; thence northerly along an arc with a radius of 6,000 yards, with Marshall Reservation as a center, to the intersection of a line north 70° east from Marshall Reservation; thence south 70° west 6,000 yards to Marshall Reservation; thence westerly along the shore line of Sullivans Island to the point of beginning. All bearings are referred to true meridian.

THE REGULATIONS

(b) (1) Except as hereinafter provided the waters described above are open throughout the year to the public for fishing and traffic except during target practice.

(2) On days when artillery firing is to be conducted, a large red flag will be displayed from the Signal Tower at Old Fort Moultrie at the West end of the Reservation. This flag will be displayed not later than 7:00 a. m. of that day, and will be removed when firing ceases for the day. In addition a red flag will be displayed at the firing battery during the actual firing.

(3) On days when small arms or anti-aircraft firing is to be conducted, a large red flag with a large white flag beneath it will be displayed from the Signal Tower at Old Fort Moultrie at the West end of the reservation. These flags will be displayed not later than 7:00 a. m. of that day, and will be removed when firing ceases for the day. In addition a similar red flag and a white flag will be displayed at the firing position during the actual firing.

(4) When night firing is scheduled, a large white flag will be displayed from the same tower at 4:00 p. m. of that day.

(5) On days and nights when firing is in progress, no boat or vessel will enter and remain in the restricted area described in paragraph 2 of this report, except under the written authority of the Commanding Officer, Harbor Defenses of Charleston, South Carolina.

(6) Any vessel proceeding at a speed greater than five (5) miles per hour may proceed directly through the firing area without restriction, except when notified to the contrary.

(7) These regulations shall be enforced by the Commanding Officer, Harbor Defenses of Charleston, Fort Moultrie, South Carolina, through such officers, enlisted men, and employees as may be assigned thereto. (40 Stat. 892; 33 U.S.C. 3) [Regs., June 5, 1940 (E.D. 7195 (Charleston Harbor, S. C.) 3/6)]

[SEAL] E. S. ADAMS,
Major General,
The Adjutant General.

[F. R. Doc. 40-2768; Filed, July 3, 1940; 11:31 a. m.]

TITLE 36—PARKS AND FORESTS

CHAPTER I—NATIONAL PARK SERVICE

ROCKY MOUNTAIN NATIONAL PARK

AMENDMENT TO SUBSIDIARY REGULATIONS

Pursuant to the authority granted to the Secretary of the Interior by the Act of August 25, 1916 (39 Stat. 535; 16 U.S.C. 3), and pursuant to the authority granted to the Director of the National Park Service by the Rules and Regulations issued thereunder (1 F.R. 672; 36 CFR, Chapter I, Part 2), sub-paragraph (8) of paragraph (b) of section 20.7 of the subsidiary regulations for Rocky Mountain National Park, as amended March 4, 1940 (5 F.R. 1012 (DI)), is hereby further amended to read as follows:

(8) The following lakes and streams are closed to fishing:

Hidden Valley Creek, between Trail Ridge Road and the Horseshoe Park-Deer Ridge Road.

Tonahutu Creek, for a distance of three miles above the park boundary.

Haiyaha Lake.

Spruce Lake.

Dream Lake.

Approved, June 26, 1940.

[SEAL] A. E. DEMARAY,
Acting Director.

[F. R. Doc. 40-2752; Filed, July 3, 1940; 9:27 a. m.]

TITLE 47—TELECOMMUNICATION

CHAPTER I—FEDERAL COMMUNICATIONS COMMISSION

STANDARDS OF GOOD ENGINEERING PRACTICE CONCERNING HIGH FREQUENCY BROADCAST STATIONS (43,000–50,000 KILOCYCLES)

APPROVED JUNE 28; EFFECTIVE IMMEDIATELY

1. *Engineering standards of allocation.* (a) Section 3.225 prescribes three groups of channels for the use of high frequency broadcast stations. The stations within each group of channels have a specific purpose in the plan of allocation and provide a service to a particular type of area. Section 3.222 of the rules requires that high frequency broadcast stations be licensed on the basis of an area in square miles in the service area and that the contour bounding the service area and the radii of this contour shall be determined in accordance with these standards. A high frequency broadcast station has but one service, that which corresponds to primary service of standard broadcast stations. No service from sky waves or secondary service is obtainable. No intermittent service is recognized. Therefore, the extent of the service is determined by the point at which the primary service signal is no longer of sufficient intensity to provide broadcast service. The field intensity necessary for service is given:

TABLE I—SERVICE

Area:	*Median Field Intensity*
City areas near factories, car lines, or busy streets	1 mv/m
Rural areas away from highways	0.05 mv/m

The above figures are based on the absence of objectionable fading and the usual noise levels encountered in the two areas and also predicated upon the absence of interference from other high frequency broadcast stations.

(b) The service area is established as follows: On a topographic map of the proposed service area of the station at least 8 radials separated by approximately 45° are drawn in the several directions from the proposed location of the transmitter. From these radials there should then be plotted profile graphs of each radial. An appropriate scale should be used with distance in miles from the antenna plotted as abscissa and the elevation as ordinate in feet plotted by 40 to 100 foot contour intervals. The profile graphs should then be divided into sectors with respect to the distance in miles, each sector being not more than approximately one-tenth of the roughly estimated distance to the desired service contour, and from these sectors the average elevation for each sector or several sectors may be readily determined. This map and the profile graphs are then used in the determination of the radii of the service

area of high frequency broadcast stations as set out below.

(c) To determine the radii of the service contour the Graph (Figure 1) and Description (Annex I) concerning the range of high frequency broadcast stations should be used. The method of use and an example are contained in Annex I. The height of the transmitting antenna used in connection with Figure 1 should be the proposed height of the antenna above the average elevation between the antenna and the 1 mv/m or 0.05 mv/m contour, whichever is under investigation. This determination, of course, involves the assumption of the antenna height above the average elevation and from this assumption a determination is made of the distance to the desired contour. The average elevation over the distance just found to the desired contour may then be determined and checked with the assumed height. If the assumption was in error, it may then be modified and the problem repeated to reduce the error in the distance to the desired contour. This cut and try process must be repeated until the error is negligible.

The foregoing process of determining the extent of the 1 mv/m or 0.05 mv/m contours shall be followed in determining the boundary of the station's predicted service area. The boundaries of the service area of both the 1 mv/m and the 0.05 mv/m contour must be established and submitted with each application for a high frequency broadcast station.

(d) The distances along each radial to the 0.05 and/or the 1 mv/m contours should then be plotted on the topographic map required by (c) above or polar coordinate paper. The area within each contour should then be measured (by planimeter or other approximate means) to determine the area which the proposed station will serve. The station is rated on basis of the area within the 0.05 mv/m contour or the contour free of interference if greater than the 0.05 mv/m contour.

2. *Objectionable interference.* (a) Section 3.225 (f) requires that the proposed station shall not suffer interference to such an extent that its service will be reduced to an unsatisfactory degree. Objectionable interference will be considered to exist when the signal for 50% of the distance in any sector on a radial as determined from Section 1 (d) of these standards exceeds 0.005 mv/m at the 0.05 mv/m contour of the desired station. In the case of a station protected to the 1 mv/m contour, objectionable interference occurs when the signal for 50% of the distance in any sector exceeds 0.1 mv/m. At other field intensities the following ratios of the desired to undesired signals shall govern.

TABLE II

Channel separation:	*Ratio of desired to undesired signals*
Same channel	10:1 median field intensity.
Adjacent channel (200 kc).	2:1 median field intensity.

In the absence of measurements to determine the extent of the service contours of the desired station and the interference contours of the undesired station, the signals shall be determined by use of the Graph I in the manner heretofore described. Measurements to determine the extent of one or both of the signals involved are preferable. Measurements should be made in accordance with Annex II associated herewith.

(b) The signal intensity for 0.05 mv/m 50% distance is interpreted to mean the contour bounded by the sector on a radial on the map of 1 (c) above wherein the signal of the station for 50% of the distance represented by the sector on the radial is equal to 0.05 mv/m. The boundary of the service area shall be taken as the outer edge of the sector nearest the transmitter wherein the signal is the desired value for 50% of the distance. For the methods of measurement of this signal see Annex II, "Field Intensity Measurements of High Frequency Broadcast Stations".

3. *Transmitter location.* (a) The transmitter location should be as near the center of the proposed service area as possible consistent with the applicant's ability to find a site with sufficient elevation to provide service throughout the area. Location of the transmitter at a point of high elevation is necessary to reduce to a minimum the shadow effect on propagation due to built-up city areas, hills, and other obstructions which may reduce materially the intensity of the station's signals in a particular direction. The transmitter site should be selected consistent with the purpose of the station, i. e., whether it is intended to serve a small city, a metropolitan area or a large region. Inasmuch as service may be provided by signals of 1 mv/m or greater field intensities in built-up urban areas, and inasmuch as signals in excess of 0.05 mv/m will provide service in rural areas away from highways, considerably more latitude in the exact geographical location of the transmitter is permitted for a high frequency broadcast station than for a standard broadcast station; however, the necessity for a high elevation for the antenna may render this problem more difficult. In general, the transmitting antenna of a station should be located at the most central point at the highest elevation available. Where a directive antenna is used, a central location may not be desirable and, in fact, the availability of suitable sites may make necessary the use of directive antennas. The antenna height above the average elevation of the service area is the most important factor in obtaining coverage with a high frequency broadcast station. Doubling the height of the antenna is equivalent to increasing the power by four times. The power is only one of several important factors (See Annex I and Fig. I).

(b) The transmitter site should be selected such that the 1.0 mv/m contour encompasses all the urban population within the area proposed to be served and the 0.05 mv/m contour provides the maximum obtainable service consistent with the area desired to be served. While no standards with respect to blanket area are established, every precaution must be taken not to locate a station in a residential area.

4. *Operating power; determination and maintenance.* (a) Section 3.251 requires that the operating power and the requirements for maintenance thereof of each high frequency broadcast station shall be determined in accordance with the Standards of Good Engineering Practice. The operating power must be determined by one of two methods:

(1)[1] Indirect measurement, by means of the plate input power to the last radio stage in accordance with (b) below, or;

(2) By measurement of the antenna or transmission line current required to produce the service area set out in (e) below.

(b) The operating power determined by indirect measurement of the plate input power of the last radio stage is the product of the plate voltage (E_p), the total plate current of the last radio stage (I_p) and the factor of 0.60, that is

$$\text{Operating power} = E_p \times I_p \times 0.60$$

(c) The operating power maintained by the antenna or transmission line current, required to obtain the service area as proposed in the application and specified in the station license shall be the direct method. The proof of performance from continuous field intensity recordings shall be used to establish the service area. These data shall be submitted to and approved by the Commission before any licensee will be authorized to operate with the power indicated by this method. If any change is made in the antenna system or any change made which may affect the antenna system, the method of determining operating power shall be changed immediately to the indirect method.

(d) The licensee of a broadcast station shall maintain the antenna or transmission line current of the station within the prescribed limits of the authorization at all times except that in an emergency when, due to causes beyond the control of the licensee, it becomes impossible to operate with full licensed power, the station may be operated at reduced power for a period of not to exceed ten days, provided that the Commission and the Inspector in Charge shall be notified in writing immediately after the emergency develops.

5. *Proof of performance of high frequency broadcast stations.* (a) Section 3.227 requires that within one year

[1] Until Jan. 1, 1941, high frequency broadcast stations will be permitted to determine the operating power by the indirect method for a period of one year after the beginning of regular operation.

from the date of the first regular operation of a high frequency broadcast station a survey to determine the performance of the station shall be made and submitted to the Commission to establish the actual field intensity contours from which the operating constants required to deliver service to the entire area specified in the license can be determined. This proof of performance shall be established by continuous field intensity records generally along the several radials shown on the topographic map submitted with the application for construction permit. The measured radials shall be carried to a point sufficiently beyond the locations of the predicted service contours to arrive at an accurate determination of the boundary of the service area of the station as predicted in the original application. The field intensities for the several sectors along each radial shall be determined as outlined in Annex II, "Field Intensity Measurements of High Frequency Broadcast Stations."

The survey data submitted shall include a topographic map similar to that submitted with the application with the original radials and the actual paths followed by the car in making the measurements plotted thereon. The field intensity for each sector shall be shown either on the map or in tabular form accompanying it with necessary notation to identify the sector to which the field applies and the extent of the 0.05 mv/m contour and/or the 1.0 mv/m contour plotted.

6. *Technical equipment pursuant to § 3.245*—A. *Design.*—The general design of the high frequency broadcast transmitting equipment (main studio microphones, amplifiers, lines or other circuits between studios and transmitter, and transmitter) shall be in accordance with the following specifications: For points not specifically covered, the principles set out shall be followed. The equipment shall be so designed that:

(1) The maximum rated carrier power as determined under § 3.242 is in accordance with the requirements of § 3.241.

(2) The equipment is capable of satisfactory operation at the authorized operating power or the proposed operating power with frequency swing plus and minus 75 kilocycles. At any frequency between 50 and 15,000 cycles at a swing of 75 kilocycles, the combined audio frequency harmonics generated by the transmitting system shall not be in excess of 2 percent (root mean square value).

(3) The transmitter and associated studio equipment shall be capable of transmitting a band of frequencies from 50 to 15,000 cycles within 2 decibels of the level of 1,000 cycles. In addition provision shall be made for pre-emphasis of the higher frequencies in accordance with impedance-frequency characteristics of a series inductance resistance network having a time constant of 100 microseconds.

(4) The noise in the output of the transmitter in the band 50 to 15,000 cycles shall be at least 60 decibels below the audio frequency level represented by a frequency swing of 75 kilocycles (100 percent modulation).

(5) The transmitter shall be equipped with suitable indicating instruments in accordance with the requirements of § 3.246 and other instruments as are necessary for proper adjustment and maintenance of operation of the equipment.

(6) Adequate provision shall be made for varying the transmitter power output between sufficient limits to compensate for excessive variations in line voltage, or other factors which may affect the power output. The assigned center frequency shall be maintained within the allowed tolerance by automatic means which are not dependent upon inductances or capacitors for inherent stability and capable of maintaining the operating frequency within the limits of plus or minus 2,000 cycles specified by § 3.246.

(7) Means should be provided for connection and continuous operation of the approved modulation monitor and approved frequency monitor.

B. All high frequency broadcast transmitters shall be constructed in accordance with Section 12 B of the Standards of Good Engineering Practice concerning Standard Broadcast Stations.

C. All high frequency broadcast transmitters shall be wired and shielded in accordance with Section 12 C of the Standards of Good Engineering Practice concerning Standard Broadcast Stations.

D. The installation of all high frequency broadcast transmitters shall be in accordance with Section 12 D of the Standards of Good Engineering Practice concerning Standard Broadcast Stations.

E. Spare tubes for high frequency broadcast stations shall be provided in accordance with Section 12 E of the Standards of Good Engineering Practice concerning Standard Broadcast Stations.

F. *Operation.* In addition to specific requirements of the rules governing high frequency broadcast stations, the following operating requirements shall be specified:

(1) The maximum percentage of modulation shall be maintained in accordance with § 3.252. However, precautions shall be taken so as not to substantially alter the dynamic characteristics of musical programs.

(2) Spurious emissions, including radio frequency and audio frequency harmonics shall be maintained at as low a level as practicable at all times in accordance with good engineering practice.

G. *Studio equipment.* Studio equipment shall be subject to all the above requirements where applicable except as follows:

(1) If properly covered by an underwriter's certificate, it will be considered as satisfying safety requirements.

(2) Section 8191 of Article 810 of the National Electrical Code shall apply for voltages only in excess of 500 volts.

No specific requirements are made relative to the design and acoustical treatment of studios. However, the design of studios, particularly the main, shall be compatible with the required performance characteristics of high frequency broadcast stations.

7. *Indicating instruments.* Section 3.237 requires that each high frequency broadcast station have suitable indicating instruments for determining the plate circuit current and voltage to the final stage of the transmitter. In addition, high frequency broadcast stations are required to provide a suitable radio frequency ammeter to measure the antenna or transmission line current.

The requirements and specifications contained in the Standards of Good Engineering Practice concerning Standard Broadcast Stations, Section 13, subsections A, B, (except a (6) and h), D, E, G, and H shall apply to indicating instruments used by high frequency broadcast stations in compliance with this rule:

Sections 3.224, 3.241, 3.245 and 3.246 concerning the design, construction and technical operation of high frequency broadcast equipment. In order to facilitate the filing of and action on applications for construction permits specifying equipment of standard manufacture, the Commission will approve, as complying with the technical requirements, such equipment by type subject to the following conditions and in accordance with the following procedure:

(a) Approval of equipment by the Commission is only to the effect that in so far as can be determined from the data supplied the equipment complies with the current requirements of good engineering practice and the technical Rules and Regulations of the Commission. The approval may be withdrawn upon subsequent inspection or operation showing the equipment is not as represented or does not comply with the technical Rules and Regulations of the Commission and the requirements of good engineering practice.

(b) Such approval shall not be construed to mean that the equipment will be satisfactory as the state of the art progresses and/or as the Rules and Regulations of the Commission may be changed as deemed advisable.

(c) Applicants specifying equipment of approved manufacture need not submit detailed descriptions and diagrams where the correct type number is specified provided the equipment, including the antenna tuning unit, is identical with that approved.

(d) In passing on equipment, no consideration is given by the Commission to patent rights.

(e) For approval of high frequency broadcast transmitters, manufacturers shall submit F.C.C. Form 319 completed with respect to all pertinent sections and the data set forth below, both of which shall be verified before a notary public.

(1) Photograph or drawings, or any other evidence that construction is in accordance with the requirements of good engineering practice.

(2) Data and curves showing overall audio frequency response from 50 to 1500 cycles for approximately 25, 50, and 100 per cent modulation.

(3) Data on audio frequency harmonics for 25, 50, and 100 per cent modulation for the fundamental frequencies of 50, 100, 400, 1000, 5000, 10000 and 15000 cycles.

(4) Data showing performance of preemphasis circuits.

(5) Carrier hum and extraneous noise generated within the equipment and measured as the level below 100 per cent modulation.

(6) How output power is varied to compensate for power supply voltage variations.

(7) Data and curves on mean frequency stability for variations in ambient temperatures over the range encountered in practice.

(8) Data and curves on frequency stability for variations in power supply voltage from 85 to 115 per cent normal.

(9) Net sale price.

(f) For approval of automatic frequency control equipment or modulation equipment for high frequency broadcast transmitters, manufacturers shall complete F.C.C. Form 319 with respect to all pertinent sections as required for complete transmitters.

9. *Requirements for approval of frequency monitors.* Section 3.243 requires that the licensee of each high frequency broadcast station shall have in operation at the transmitter a frequency monitor independent of the frequency control of the transmitter. The frequency monitor shall be capable of maintaining an accuracy within at least one-half (1000 cycles) of the permitted frequency deviation of the high frequency broadcast station. Visual indication of the operating frequency shall be provided. (Further detailed specifications to be established.)

10. *Requirements for approval of modulation monitors.* Section 3.235 requires all high frequency broadcast stations to have in operation a modulation monitor. This monitor should have substantially the same performance as the Standard Broadcast Monitor. (Further detailed specifications to be established.)

11. *Approved equipment.* (To be supplied.)

12. *High frequency broadcast application forms.* The Communications Act of 1934, as amended, and the Rules and Regulations of the Commission require that an application be made to the Commission for various authorizations. In order to be of aid to applicants there is set out below the correct forms to be submitted in making application for various authorizations applicable to high frequency broadcast stations.

In general, these forms shall be completed in full, answering each specific section. The only exception is in the technical sections when in the case of standard equipment which has been approved by type number by the Commission or when no change in such equipment is involved, in which cases the manufacturer's name and type number of the approved equipment may be stated, or should be noted "no change" in each section applicable. All applications involving actual operation, such as license to cover construction permit, renewal of license, etc., shall be completed in full regardless of whether such information has been previously filed with the Commission.

F.C.C. Form 319—Application for high frequency broadcast station construction permit or modification thereof shall be used for all applications for authority:

(1) To erect a new high frequency broadcast station.

(2) Any change in assignment involving construction as listed in (3) to (6) below.

(3) To install new transmitter.

(4) To make any change affecting the maximum rated carrier power or type number of equipment.

(5) To change the location of the existing transmitter.

(6) To install new antenna system or make substantial change in an existing antenna system which may result in an increase in service.

(7) For modification of any outstanding construction permit which has not been covered by license.

F.C.C. Form 320—Application for High Frequency Broadcast Station License shall be used for all applications for license:

(1) To cover construction permit.

(2) For regular authorization covering experimental authorization.

F.C.C. Form 321—Application for Modification of High Frequency Broadcast Station License shall be used for all applications for modification of any term of an existing regular license of a high frequency broadcast station where a construction permit is not required:

(1) Change of frequency.

(2) Change of coverage where the equipment at present installed is capable of satisfactory operation at the proposed coverage.

(3) Change of location of main studio.

(4) Change of name of licensee where no change in ownership is involved.

F.C.C. Form 322—Application for Renewal of High Frequency Broadcast Station License shall be used for all applications for renewal of regular licenses of all high frequency broadcast stations.

ANNEX I

Description of Chart To Be Used for Determining the Range of High Frequency Broadcast Stations

The attached chart [1] may be used in the following way for determining for a 30-foot receiving antenna the distance to the 50 microvolt per meter contour for a high frequency station operating in the 42 to 50 mc. band. This distance is determined by the values of the transmitting antenna height, the antenna power and the antenna field gain. The method of using the chart is illustrated by the following example which is shown as a dashed line on the chart. In this example the transmitting antenna height is 750 feet; the antenna power is 500 watts and the antenna field gain is 2. The effective power to be used in connection with the chart is determined by multiplying the antenna power by the square of the antenna field gain; thus for the example the effective power would be $500 \times 2 \times 2 = 2000$ watts or 2 kilowatts. To determine the distance to the 50 microvolt per meter contour in the example given follow the 750-foot horizontal line over to the 45° line marked 2 kilowatts and proceed vertically downward to the point half way between the curved lines marked 1000 feet and 500 feet; finally proceed horizontally again to the left to find that the expected range is 54.5 miles. By reversing the above procedure, the chart can, of course, be used for determining the power required for a given antenna height in order to cover a certain distance.

Additional power scales have been placed on the chart so that the distance to the 5 and 1000 microvolt per meter contours may also be easily determined. In general, by using the scale marked θ at the bottom of the chart, the distance to any desired contour may be determined.

$$\theta = h \times P^{\frac{1}{2}} \times G \times \left(\frac{50}{F}\right)$$

h=transmitting antenna height expressed in feet.
$P^{\frac{1}{2}}$=square root of the antenna power expressed in kilowatts.
G=antenna field gain.
F=desired field intensity expressed in microvolts per meter.

Having determined θ by means of the above formula, the corresponding distance is determined by proceeding vertically on the chart at that value of θ to the appropriate curved line and then horizontally to the left to determine the distance.

ANNEX II

Field Intensity Measurements of High Frequency Broadcast Stations

Where required by the Standards of Good Engineering Practice concerning

[1] Filed as a part of the original document.

High Frequency Broadcast Stations, field intensity measurements shall be made with suitable measuring equipment having associated therewith a continuous recording device, the chart of which is either directly driven from the speedometer of the automobile in which the equipment is mounted, or so arranged that distances and identifying land marks may be readily noted. The measuring equipment must be calibrated against recognized standards of field intensity and so constructed that it will maintain an acceptable accuracy of measurement while in motion or stationary. The equipment should be so operated that the recorder chart can be calibrated directly in field intensity in order to facilitate analysis of the chart.

Measurements made to determine the performance of high frequency broadcast stations in connection with interference studies of high frequency broadcast stations should be made along roads which parallel as nearly as possible the radials shown on the topographic map submitted with the application for construction permit. Locations shall be noted on the recorder chart as frequently as necessary to determine the exact location of the car in order to definitely fix the relation between the measured field intensity and the location.

Where measurements are made to determine the signal in connection with problems of interference with other high frequency broadcast stations, they shall be carried to a point well beyond the 0.005 or 0.1 mv/m. contours, whichever is pertinent to the particular problem, in order that the data may be adequate to accurately determine any interference.

After measurements are completed, the recorder chart shall be divided into sections, each section representing the projection of the actual path followed in making the measurements upon the sector of the radial from the topographic map along which the measurements are made. The field intensities in each section of the chart shall be analyzed to determine the intensity expected 50 per cent of the distance (median field) throughout the section and this median field intensity is then associated with the corresponding sector of the radial. The sectors must not be longer than one-tenth the service radius or more than 5 miles. The outer boundary of each sector along the radial shall then be considered as the extent of a particular field intensity contour in the particular direction of a radial.

When making measurements at some distance from the station, stationary records should be made to determine the conditions of fading of the signal.

Sufficient data are not available to establish the long distance interference propagation characteristics. In any case under study measurements should be made similar to that in the standard band. Also, special studies will be necessary to establish the variation of the signal in the service area with seasons, sun spot cycles, et cetera.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 40-2766; Filed, July 3, 1940; 11:17 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

CHAPTER I—INTERSTATE COMMERCE COMMISSION

IN THE MATTER OF MONTHLY REPORTS FROM STEAM RAILWAYS OF CLASS I

At a Session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 29th day of May, A. D. 1940.

The subject of monthly reports of selected income and balance-sheet items being under consideration:

It is ordered, That—

1. The order of this Commission, dated January 26, 1932, in the matter of monthly reports of selected income and balance-sheet items of Class I steam railways, including switching and terminal companies is hereby annulled, effective July 1, 1940.

2. Beginning with the month of July 1940, and thereafter unless otherwise ordered, all steam railway companies of Class I, excluding switching and terminal companies, subject to the Interstate Commerce Act be, and they hereby are, required to file monthly reports of selected income and balance-sheet items in accordance with Form I.B.S.,[1] Monthly Report of Selected Income and Balance-Sheet Items, which is hereby approved and made a part of this order. Said monthly reports shall be made under oath and filed in duplicate in the Bureau of Statistics, Interstate Commerce Commission, Washington, D. C., within forty-five days after the end of the month to which they relate.

By the Commission, division 1.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 40-2756; Filed, July 3, 1940; 10:27 a. m.]

Notices

DEPARTMENT OF THE INTERIOR.

Bureau of Reclamation.

FIRST FORM RECLAMATION WITHDRAWAL

COLUMBIA BASIN PROJECT, WASHINGTON

JUNE 7, 1940.

THE SECRETARY OF THE INTERIOR.

SIR: In accordance with the authority vested in you by the act of June 28, 1934 (48 Stat. 1269) as amended, it is recommended that the following described land be withdrawn from public entry under the first form withdrawal as provided in Section 3, act of June 17, 1902 (32 Stat. 388).

COLUMBIA BASIN PROJECT, WASHINGTON

Willamette Meridian

T. 20 N., R. 31 E., Sec. 30, SW¼SE¼

Respectfully,

JOHN C. PAGE, *Commissioner.*

I concur: June 21, 1940.

FRED W. JOHNSON, *Commissioner of the General Land Office.*

The foregoing recommendation is hereby approved and the Commissioner of the General Land Office will cause the records of his office and the local land office to be noted accordingly.

W. C. MENDENHALL, *Acting Under Secretary of the Interior.*

JUNE 26, 1940.

[F. R. Doc. 40-2753; Filed, July 3, 1940; 10:08 a. m.]

FIRST FORM RECLAMATION WITHDRAWAL

COLUMBIA BASIN PROJECT, WASHINGTON

THE SECRETARY OF THE INTERIOR.

SIR: In accordance with the authority vested in you by the Act of June 28, 1934 (48 Stat., 1269), it is recommended that the following described land be withdrawn from public entry under the first form withdrawal as provided in Section 3, Act of June 17, 1902 (32 Stat., 388).

COLUMBIA BASIN PROJECT, WASHINGTON

Williamette Meredian

T. 28 N., R. 36 E., Sec. 20, Lot 20.

Respectfully,

JOHN C. PAGE, *Commissioner.*

JUNE 21, 1940.

I concur:

FRED W. JOHNSON, *Commissioner of the General Land Office.*

The foregoing recommendation is hereby approved, and it is so ordered. The Commissioner of the General Land Office is hereby authorized and directed to cause the records of his office and the local land office to be noted accordingly.

W. C. MENDENHALL, *Acting Under Secretary of the Interior.*

JUNE 26, 1940.

[F. R. Doc. 40-2754; Filed, July 3, 1940; 10:08 a. m.]

[1] Filed as a part of the original document.

SECURITIES AND EXCHANGE COMMISSION.

[File No. 70-74]

IN THE MATTER OF SOUTHEASTERN INVESTING CORPORATION

ORDER MAKING DECLARATION EFFECTIVE

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 27th day of June, A. D. 1940.

Southeastern Investing Corporation, a direct subsidiary of a registered holding company, having filed a declaration pursuant to Section 7 of the Public Utility Holding Company Act of 1935, regarding the issue and sale by it to The Chase National Bank of the City of New York of its $1,100,000 3½% secured promissory note to be dated on or about June 28, 1940 and to mature one year from date of issuance, the declaration also embracing the pledge as security for said note of the following securities owned by declarant: $1,200,000 principal amount Virginia Public Service Company First Mortgage 5% Bonds due 1950, $357,400 principal amount Broad River Power Company First Mortgage 5% Bonds due 1954, $343,600 principal amount Lexington Water Power Company First Mortgage 5% Bonds due 1968 and a second lien on $3,000,000 principal amount Broad River Power Company First Mortgage 5% Bonds due 1954 and $1,000,000 principal amount of Lexington Water Power Company First Mortgage 5% Bonds due 1968;

A hearing[1] on such declaration, as amended, having been held after appropriate notice; the record in this matter having been duly considered;

It is ordered, That said declaration be and become effective forthwith, subject, however, to the following conditions;

1. That such issue and sale of such note and the pledge of the collateral securities thereunder shall be in compliance with the terms and conditions of, and for the purposes represented by, said declaration as amended;

2. That within ten days after the issue and sale of such note and the pledge of the collateral thereunder, the declarant shall file with this Commission its Certificate of Notification showing that the issue and sale of the note and the pledge of the collateral thereunder have been effected in accordance with the terms and conditions of, and for the purposes represented by said declaration as amended;

3. That when all expenses incurred in connection with the issue and sale of such note shall have been actually paid, the declarant shall file a detailed statement of such expenses showing the names of persons or entities to whom such payments were made, the amounts of such payments, the accounts charged and a detailed description of the services rendered in connection with the issue and sale.

4. That the Commission reserves jurisdiction over the payment of any fees to counsel for The Chase National Bank in connection with the proposed issuance and sale of the present note and/or the pledge of the securities thereunder.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 40-2761; Filed, July 3, 1940; 11:10 a. m.]

[1] 5 F.R. 2189.

[File No. 70-59]

IN THE MATTER OF OGDEN CORPORATION

ORDER MAKING DECLARATION EFFECTIVE

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 29th day of June, A. D. 1940.

Ogden Corporation, a registered holding company, having filed a declaration and amendments thereto pursuant to section 7 of the Public Utility Holding Company Act of 1935 regarding the issue and sale of a 2½% note in the principal amount of $4,400,000 to the Manufacturers Trust Company of the City of New York; and

A public hearing[1] having been held on said declaration and amendments thereto after appropriate notice, the Commission having considered the record in this matter, and having made and filed its findings and opinion herein;

It is ordered, That the said declaration be and become effective forthwith, subject however, to the following conditions:

1. That the issue and sale of said 2½% note shall be effected in substantial compliance with the terms and conditions set forth in, and for the purposes represented by, said declaration as amended;

2. That the transaction set forth in the declaration, as amended, in connection with the issue and sale of the said 2½% note, be consummated within sixty (60) days after the date of this order;

3. That within ten (10) days after the issue and sale of said 2½% note, declarant shall file with this Commission a certificate of notification showing that such issue and sale have been effected in substantial compliance with the terms and conditions set forth in, and for the purposes represented by, said declaration, as amended; and

4. That when all expenses, incurred in connection with the issue and sale of said 2½% note, and the preparation and prosecution of the declaration concerned with the present transactions, shall be actually paid, declarant shall file a detailed statement of such expenses showing the names of persons or entities to whom such payments were made, the amount of such payments, the accounts charged, and a detailed description of the services rendered for which such payments were made.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F: R. Doc. 40-2762; Filed, July 3, 1940; 11:10 a. m.]

[1] 5 F.R. 2012.

[File No. 59-9]

IN THE MATTER OF STANDARD POWER AND LIGHT CORPORATION, STANDARD GAS AND ELECTRIC COMPANY AND SUBSIDIARY COMPANIES THEREOF, RESPONDENTS

ORDER EXTENDING TIME FOR HEARING

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 1st day of July, A. D. 1940.

Standard Gas and Electric Company, in behalf of itself and all other Respondents herein except Standard Power and Light Corporation, having filed a petition for an extension of the time for hearing herein from July 5, 1940 to August 6, 1940;

It appearing to the Commission from said petition that the granting of such extension would be in the public interest and in the interest of investors and consumers;

It is ordered, That the time for hearing herein be, and it hereby is extended to August 6, 1940.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 40-2763; Filed, July 3, 1940; 11:10 a. m.]

[File No. 1-995]

IN THE MATTER OF PINES WINTERFRONT COMPANY COMMON CAPITAL STOCK, $1 PAR VALUE

ORDER SETTING HEARING ON APPLICATION TO STRIKE FROM LISTING AND REGISTRATION

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 2nd day of July, A. D. 1940.

The Chicago Stock Exchange pursuant to Section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule X-12D2-1 (b) promulgated thereunder, having made application to strike from listing and registration the Common Capital Stock, $1.00 Par Value of Pines Winterfront Company; and

The Commission deeming it necessary for the protection of investors that a

hearing be held in this matter at which all interested persons be given an opportunity to be heard;

It is ordered, That the matter be set down for hearing at 10:00 A. M. on Thursday, August 1, 1940 at the office of the Securities & Exchange Commission, 105 W. Adams Street, Chicago, Illinois, and continue thereafter at such times and places as the Commission or its officer herein designated shall determine, and that general notice thereof be given; and

It is further ordered, That Henry Fitts an officer of the Commission, be and he hereby is designated to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, and require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 40-2764; Filed, July 3, 1940; 11:11 a. m.]

[File No. 70-101]

IN THE MATTER OF THE CLEVELAND ELECTRIC ILLUMINATING COMPANY

ORDER CHANGING HEARING DATE

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 2nd day of July, A. D. 1940.

An order having been heretofore entered by this Commission in the above entitled proceeding setting the same down for hearing on July 18, 1940, at ten o'clock in the forenoon of that day at the Securities and Exchange Building, 1778 Pennsylvania Avenue NW., Washington, D. C., and the applicant having now requested that said hearing date be accelerated to July 16, 1940, and the Commission finding such request proper to be granted;

It is ordered, That the hearing in the above entitled proceeding heretofore set for July 18, 1940, be, and the same is hereby set for hearing on July 16, 1940, at the hour and place above mentioned instead of for July 18, 1940.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Recording Secretary.

[F. R. Doc. 40-2765; Filed, July 3, 1940; 11:11 a. m.]

UNITED STATES CIVIL SERVICE COMMISSION.

CONDITION OF THE APPORTIONMENT AT CLOSE OF BUSINESS SATURDAY, JUNE 29, 1940

Important. Although the apportioned classified civil service is by law located only in Washington, D. C., it nevertheless includes only about half of the Federal Civilian positions in the District of Columbia. Positions in local post offices, customs districts and other field services outside of the District of Columbia which are subject to the Civil Service Act are filled almost wholly by persons who are local residents of the general community in which the vacancies exist. It should be noted and understood that so long as a person occupies, by original appointment, a position in the apportioned service the charge for his appointment continues to run against his State of original residence. Certifications of eligibles are first made from States which are in arrears.

State	Number of positions to which entitled	Number of positions occupied
IN ARREARS		
1. Virgin Islands	9	0
2. Puerto Rico	660	44
3. Hawaii	157	17
4. Alaska	25	8
5. California	2,426	872
6. Texas	2,489	1,022
7. Louisiana	898	425
8. Michigan	2,069	1,009
9. Arizona	186	98
10. South Carolina	743	415
11. Mississippi	859	516
12. New Jersey	1,727	1,039
13. Ohio	2,840	1,720
14. Alabama	1,131	691
15. Arkansas	792	489
16. Georgia	1,243	792
17. Oklahoma	1,024	664
18. Kentucky	1,117	740
19. North Carolina	1,355	916
20. New Mexico	181	125
21. Tennessee	1,118	848
22. Illinois	3,260	2,597
23. Nevada	39	32
24. Wisconsin	1,256	1,049
25. Indiana	1,384	1,210
26. Connecticut	687	619
27. Florida	627	576
28. Delaware	102	95
29. Idaho	190	178
30. Vermont	154	145
31. Oregon	408	387
32. Montana	230	224
33. Maine	341	333
34. Wyoming	96	94
35. West Virginia	739	731
36. Massachusetts	1,816	1,810

State	Number of positions to which entitled	Number of positions occupied	Net gain or loss since July 1, 1939
IN EXCESS			
37. New Hampshire	199	200	+12
38. North Dakota	291	293	−34
39. Missouri	1,551	1,566	−2
40. Washington	668	675	−3
41. Kansas	804	819	−47
42. Pennsylvania	4,115	4,231	+263
43. Rhode Island	294	303	−20
44. New York	5,379	5,572	+368
45. Utah	217	229	+13
46. Minnesota	1,095	1,178	−62
47. Colorado	443	481	+34
48. Iowa	1,056	1,166	−33
49. South Dakota	296	332	+3
50. Nebraska	589	730	+11
51. Virginia	1,035	2,051	−48
52. Maryland	697	2,104	+16
53. District of Columbia	208	8,851	−46

GAINS	
By appointment	295
By transfer	27
By reinstatement	9
By correction	1
Total	332
LOSSES	
By separation	59
By transfer	43
Total	102
Total appointments	53,311

NOTE.—Number of employees occupying apportioned positions who are excluded from the apportionment figures under Sec. 3, Rule VII, and the Attorney General's Opinion of August 25, 1934, 16,783.

By direction of the Commission.

[SEAL] L. A. MOYER,
Executive Director and Chief Examiner.

[F. R. Doc. 40-2749; Filed, July 2, 1940; 4:09 p. m.]